



FREQUENTLY ASKED QUESTIONS ON LAND GOVERNANCE HANDBOOK



**DIGITAL
LAND
GOVERNANCE
PROGRAMME**



**Food and Agriculture
Organization of the
United Nations**

**FREQUENTLY ASKED QUESTIONS
ON LAND GOVERNANCE
HANDBOOK**

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MESSAGE FROM CS MINISTRY OF LANDS

Land lies at the heart of Kenya's socio-economic development, environmental sustainability, and national cohesion. It supports livelihoods, drives investment, anchors cultural identity and is key to delivering priority government programs such as affordable housing and infrastructure development. Recognizing the critical role of land in the country's transformation agenda, the Government of Kenya continues to prioritize reforms that promote transparency, inclusivity, efficiency, and citizen sensitization on land governance matters.

This Frequently Asked Questions on Land Governance Handbook is a valuable resource designed to enhance public awareness on land governance. It provides simplified, clear, and accessible information on management and use of land in Kenya, whether private, public or community land. By demystifying land processes and rights, the Handbook seeks to empower citizens to engage more effectively with land administration systems and to promote equitable access to land, secure tenure, and sustainable land use.

The publication further provides information on National Land Information Management System (Ardhisasa) hence, supporting efforts on digitization and digitalization of government land records and processes respectively. Digitization and public sensitization work hand-in-hand to improve service delivery, enhance access to land information, reduce land disputes and foster accountability and trust in the land sector.

I commend Ministry of Lands, Public Works, Housing and Urban Development, the National Land Commission, the Council of Governors and the Food and Agriculture Organization of the United Nations (FAO), for their collaboration under the Digital Land Governance Programme, which made this publication possible.

It is my hope that this Handbook will enhance land governance, support key national priorities such as affordable housing, and help ensure that all Kenyans enjoy equitable access to land, secure tenure, and the benefits of sustainable land management.



Hon. Alice Wahome, EGH

*Cabinet Secretary,
Ministry of Lands, Public Works, Housing and Urban Development*

MESSAGE FROM THE PRINCIPAL SECRETARY STATE DEPARTMENT FOR LANDS AND PHYSICAL PLANNING

The State Department for Lands & Physical Planning remains committed to strengthening land governance in Kenya by promoting transparency, inclusivity, and effective service delivery to the public. The Frequently Asked Questions (FAQs) on Land Governance Handbook represents an important milestone in our shared efforts to promote clarity, fairness, and accountability in the land sector.

The preparation of this handbook reflects the dedication and commitment of the State Department for Lands, NLC, CoG, and FAO, whose efforts have resulted in a practical and accessible resource that simplifies complex land issues and provides clear guidance to the public. The State Department will support the wide circulation of this document across the country, ensuring it reaches Kenyans in all regions as a key avenue for education on land matters.

We are confident that the increased awareness generated through this handbook will contribute to reducing corruption and malpractices often associated with land transactions, as the public becomes better informed and more empowered. This is in line with the State Department's resolve to promote access to information, transparency, and good governance in all aspects of land administration.

By enabling Kenyans to better understand their rights, responsibilities, and available options on land matters, the FAQs will support more informed decision-making by individuals and communities, and help reduce conflicts and delays that often result from misinformation or lack of guidance.

I encourage all users, individuals, professionals, or institutions, to make full use of this resource and join us in advancing sound land governance across our nation.



Hon. Generali Nixon Korir, CBS.

Principal Secretary

State Department for Lands and Physical Planning

MESSAGE FROM THE CHAIRPERSON OF THE NATIONAL LAND COMMISSION

Land is one of the most critical resources for a country's economic development, social stability, and cultural identity within communities. Effective land administration is essential for ensuring tenure security, equitable access to land and resources, and sustainable land use. However, many citizens, communities, and institutions often face challenges in understanding the complexities of land matters, as well as the legal and institutional frameworks governing land in Kenya.

This Frequently Asked Questions (FAQs) document has been developed by a team of land experts from the National Land Commission, the Ministry of Lands, Housing and Urban Development, the Council of Governors, and the Food and Agriculture Organization of the United Nations (FAO), with support from the Digital Land Governance Program (DLGP).

The document offers clear, concise, and accessible responses to common inquiries on key land-related issues, including land administration, community land, gender and land rights, succession and wills, compulsory land acquisition, land disputes, historical injustices, and the role of digital systems in modern land governance in Kenya. The questions addressed in this document reflect some of the most frequently raised concerns by the public.

This document is relevant to individuals in the land sector including landowners, communities, the public, investors, legal practitioners, policymakers, non-state actors and other relevant stakeholders seeking to understand land governance processes and the procedures relating to land ownership, tenure security and transactions. By simplifying complex land matters, we aim to bridge the knowledge gap, promote transparency, and strengthen the governance of land resources for sustainable development in line with the Sustainable Development Goals (SDGs).

We trust that this FAQ guide will serve as a valuable resource in promoting informed land governance, equitable access to land rights, and tenure security.



Gershom Otachi Bw'omanwa

*Chairman,
National Land Commission*

MESSAGE FROM CHAIR, COUNCIL OF GOVERNORS

On behalf of the Council of Governors (CoG), I am pleased to present this Frequently Asked Questions (FAQ) on Land. This significant resource serves as an indispensable guide in the often-complex world of land management and administration. It embodies CoG's bold promise to deepen devolution in Kenya.

Land matters are inherently intricate. This FAQ, stemming from rigorous consultations, reviews, synthesis, and integration with County Governments, functions as an accessible, jargon-free guide. It breaks down complex legal and administrative land governance concepts into easily digestible answers, empowering individuals to understand their rights, responsibilities, and the procedures involved, thereby fostering a more informed populace.

This FAQ has been developed to openly and simply address common queries from the public. It demonstrates our unwavering commitment to transparency and the right of access to information, as outlined by Article 35 of the Constitution of Kenya 2010. By ensuring information is readily available and not confined to closed offices or specialized professionals, this initiative significantly reduces suspicions and promotes good governance.

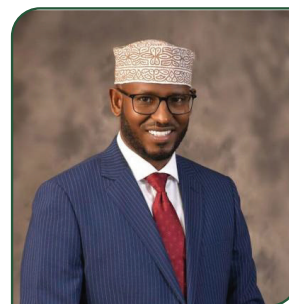
Furthermore, the FAQ builds upon the lessons learned and experiences gained from the implementation of land laws and regulations. It proactively answers the questions land officials typically receive daily, significantly reducing the volume of repetitive inquiries. This frees up valuable time for administrators to focus on more complex cases, policy development, and critical decision-making. For the public, it means faster access to information without the need for multiple calls or visits.

This FAQ empowers us all with the knowledge to make informed decisions, navigate bureaucratic processes with greater ease, and ensure compliance with our land laws and regulations, thereby fostering a more predictable environment. Serving as a single, authoritative source of truth, it ensures everyone receives consistent and accurate information, regardless of who they speak to or when they inquire.

In essence, this FAQ on Land Governance is more than just a list of questions and answers; it is a vital tool for education, empowerment, and efficiency. It serves as the first line of support, transforming an often-perceived bureaucratic hurdle into a clear, navigable path, ultimately fostering a more equitable, transparent, and efficiently managed land sector that benefits everyone.

Therefore, this FAQ provides an invaluable opportunity for the Council and the respective County Governments to continue addressing present and future challenges in Land Governance. Simultaneously, it allows us to harness potential opportunities for prosperity, ensuring citizens access timely and quality services.

Finally, I wish to emphasize that this FAQ is a powerful statement of intent in bettering land governance. The Council looks forward to actively promoting data sharing and knowledge management among its member Counties, which will, in turn, translate to the transformation of our nation into a more prosperous society.



**H.E FCPA Ahmed
Abdullahi, EGH**

*Chairperson, Council of
Governors*

MESSAGE FROM FAO REPRESENTATIVE

Land is at the heart of agricultural production, livelihoods, and food security. As Kenya continues its journey toward sustainable development, equitable land governance remains critical to unlocking the potential of land resources for all citizens. Access to clear, accurate, and timely information on land rights and procedures is a powerful tool in building trust, improving transparency, and empowering communities.

This Frequently Asked Questions (FAQ) booklet is a timely and practical resource developed under the EU-FAO Digital Land Governance Programme, which is implemented by the Food and Agriculture Organization of the United Nations (FAO) in collaboration with the Government of Kenya, including the Ministry of Lands, Public Works, Housing and Urban Development, the National Land Commission, and the Council of Governors. The Programme aims to strengthen land governance through digitization, capacity building, and inclusive policy reforms.

The booklet addresses common questions by citizens, landowners, professionals, and public officers on key aspects of land governance – including land registration, land administration, development control, dispute resolution, and land use planning. By providing simplified responses based on Kenya’s legal and institutional framework, this resource helps close the information gap and fosters public awareness and accountability.

We thank our partners for their continued collaboration and commitment to strengthening land governance systems in Kenya. We also recognize the support of the European Union, whose investment in this programme enables us to reach more counties, build institutional capacity, and support Kenya’s digital transformation agenda in the land sector.

It is my hope that this booklet becomes a widely used and referenced tool by all stakeholders—ensuring that no one is left behind in the access and use of land information services.



Dr. Nyabenyi Tipo

*FAO Representative in Kenya a.i.
Food and Agriculture Organization of the United Nations*

ACKNOWLEDGEMENT FROM THE CEO, NATIONAL LAND COMMISSION

The development of this Frequently Asked Questions (FAQs) Handbook on Land Governance has been made possible through a collaborative and consultative process involving key institutions and stakeholders dedicated to promoting transparency, accountability, and good governance in the land sector.

On behalf of the National Land Commission (NLC), I sincerely acknowledge the invaluable support of the Ministry of Lands, Public Works, Housing and Urban Development (MoLPWHUD), the Council of Governors (CoG), the European Union, and the Food and Agriculture Organization of the United Nations (FAO) through the Digital Land Governance Programme (DLGP). These institutions have played a pivotal role in enhancing access to land information and promoting knowledge sharing.

Special appreciation is extended to the technical team Husna Mbarak, Dr. Mary Macharia, Dr. Samuel Nthuni, Walter Menya, Amos Kasaine, Jacob Kipaa, Nancy Kosgey, Collins Kariuki, Teresa Matsotso, Daniel Sakwa, Michael Gitonga, Richard Bett, Carolyn Musuluve, Nancy Cheruiyot, and Evans Kipruto for their commitment and dedication in producing this handbook.

I also gratefully acknowledge the valuable contributions of professional bodies, civil society organizations, academia, the Institution of Surveyors of Kenya (ISK), the Kenya Institute of Planners (KIP), and the Law Society of Kenya (LSK), whose insights significantly enriched the content of this handbook.

It is my firm belief that this handbook will serve as a practical and authoritative resource for all stakeholders, fostering informed decision-making and strengthening land governance in Kenya.



Kabale Tache Arero

*Secretary/CEO,
National Land Commission*

EXECUTIVE SUMMARY

The National Land Policy (2009) proposed that the Government should make land information available in a form and language that can be easily understood by most citizens. In line with this, the National Land Commission (NLC) mandate under Article 67 of the Constitution of Kenya (2010) is to conduct research on land and make recommendations to the appropriate authorities.

Additionally, Article 35 of the Constitution enshrines the right of every Kenyan to seek, access, and obtain information held by public bodies. This right enables citizen to participate in public life and hold the government accountable. The Constitution further requires the State to publish and publicize important information that affects the nation.

The Access to Information Act (2016) reinforces this right, stating in Part II, Section 4 that every citizen has the right to access information held by the State or any other person, particularly when such information is required for the exercise or protection of a right or fundamental freedom. The Act also mandates public entities to facilitate access to information they hold, including details about their structure, functions, decision-making processes, and accountability mechanisms.

This Frequently Asked Questions (FAQs) handbook is the result of collaborative efforts between the National Land Commission, the Ministry of Lands, Housing and Urban Development, the Council of Governors, the Food and Agriculture Organisation of the United Nations (FAO), professional bodies (ISK, KIP, LSK), and civil society organizations under the EU-FAO Digital Land Governance Programme (DLGP). The handbook is structured around key topics identified by institutions. It addresses common concerns raised by the public when seeking government land-related services on; Land Administration, Protection of Public Land, Compulsory Land Acquisition, Community Land, Gender Land Rights & Rights of Marginalized Communities, Succession & Wills, Land Disputes & Conflicts, Including Historical Land Injustices

Additionally, the document highlights recent developments in land governance, including the National Land Information System ('Ardhisasa') and the National Land Commission's Online Repository.

We hope this document will serve as a valuable resource for all land stakeholders, enhancing access to land information and promoting transparency. In turn, this may contribute to reducing land-related conflicts, encouraging investment, and fostering sustainable land use in Kenya.

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DEFINITION OF TERMS

Boundary	The line which separates property in one ownership from its neighbour(s); it is therefore the limit in all directions to which the ownership extends.
Building code	A set of rules and regulations that specifies minimum standards of construction for building to protect public safety and health.
Building permit	Written Governmental permission for the construction, alteration or demolition of an improvement, showing compliance with building codes and zoning ordinances.
Cadastral map	A map showing the boundaries of property ownership for the recording of title and for taxation purposes.
Cadastral survey	A survey carried out to record the boundaries of a property on a plan
Charge	means an interest in land securing the payment of money or money's worth or the fulfilment of any condition and includes a surcharge and the instrument creating a charge.
Development permission	means approval granted by a planning authority for development, with or without conditions, after submission of a development application;
Easements	This is a non-possessory interest in another's land that allows for the use of the land to a particular extent, requires the proprietor to use the land in a particular manner, and shall not include use for profit. For example, one that allows the underground services (water, drainage, gas, electricity, telephone and cables, etc.) to pass beneath the land of one or more neighbouring properties.
Geo-reference	means reference to an object by a specific location either on, above or below the earth's surface.
Joint tenancy	A form of joint ownership having four requisites (known as the "four unities") namely. 1. Possession, each tenant being entitled to the whole land. 2. Interest, each having the same estate or interest. 3. Title, each holding under the same instrument and 4. Time, each holding for the same duration of the estate or interest.
Land rates	Levies imposed on freehold and leasehold tenures by the county authority to cater to social amenities in the areas where said land is located.
Land rent	Fee charged on leasehold property at a rate predetermined by the lessor, in most cases, the government.
Practising valuer	means a person who carries out and prepares valuations in respect of any type of movable or immovable property;
Registered physical planner	means a person who is holding a certificate as a registered physical planner under section 7 of the Physical Planners Registration Act, 1996;

Stamp duty	charged on various instruments, including land during transfers – with a few exemptions. Land within municipalities is charged 4% of the purchase price after valuation and 2% when located away from municipalities. Land sold to charitable organizations, transfers between spouses, transfers between a holding and subsidiary, and transfers between family members are exempt from stamp duty.
Surveyor	A Government surveyor or a licensed surveyor
Tenure	The basis upon which property is held e.g. freehold or leasehold.
Term	The duration of a lease. The term commences from the date specified in the lease, which is not necessarily the date when the document is executed or registered.

LIST OF ACRONYMS

ADR	Alternative Dispute Resolution
AJS	Alternative Justice System
CECM	County Executive Committee Member
CLA	Community Land Act
CLMC	Community Land Management Committee
CS	Cabinet secretary
DLGP	Digital Land Governance Programme
EIA	Environmental Impact Assessment
ESIA	Environment and Social Impact Assessment
FAO	Food and Agriculture Organization of the United Nations
HLI	Historical Land Injustice
ID	Identification Document
ISK	Institute of Surveyors in Kenya
KIP	Kenya Institute of Planners
KNCHR	Kenya National Commission on Human Rights
KRA	Kenya Revenue Authority
LA22	Linear Actuator 22
LA23	Linear Actuator 23
LA29	Linear Actuator 29
LSK	Law Society of Kenya
LRA	Land Registration Act
NLC	National Land Commission
PAP	Project Affected Person
PDPs	Part Development Plans
PLUPA	Physical and Land Use Planning Act
PS	Principal Secretary
PWDs	Persons living with disabilities
RIM	Registry Index Map



Frequently Asked Questions on Land Administration Processes

1. What are the various categories of Land in Kenya?

There are three categories of land, namely private, public and community land as defined in the Constitution of Kenya, 2010.

- a. Public land: Land that is unalienated or held by the state or a state organ that is not under private leasehold or held in trust by the county government for the people resident in the county as per the provisions of the Constitution of Kenya, 2010.
- b. Private land: Land held by any individual, groups of people or company under any freehold and or leasehold tenure.
- c. Community land: Land held by communities identified based on ethnicity, culture or similar community interest.

2. Conversion of Land

a) How can public land be converted to private land?

Public land may be converted to private land by allocation.

b) How can public land be converted to community land?

Public land may be converted to community land following an application by either the national or county government to the National Land Commission using the Form LA 3 as set out in The Land (Conversion of Land) Rules No. 282 of 2017 Schedule, requesting conversion of a public land to community land for the benefit of the community.

c) How can community land be converted to private land?

Community land can be converted to private land through compulsory acquisition, transfer or surrender.

d) How can private land be converted to community land?

Community land can be converted to private land through transfer, allocation by a registered community.

e) How can private land be converted to public land?

Private land can be converted to community land by transfer, surrender or operation of any written law.

f) How can private land be converted to public land?

Private land can be converted to public land through compulsory acquisition, reversion of leasehold interest to the Government, transfer or surrender.

3. What are the forms of land tenure in Kenya?

- 1) Freehold: It is where an individual, group of people or company has absolute ownership of the use and disposal of land subject to government interest and the right of other users.
- 2) Leasehold: This is the interest in land for a specific period, subject to payment of statutory levies and compliance with the relevant Terms and conditions.

- 3) Customary: Means rights derived from African Customary Law, customs or practices which are consistent with the Constitution or any other written law.
- 4) Partial interests: As may be defined by different Acts, such as easements, defined as a right to allow one to use land in a defined way without fully possessing the land.

4. What are limitations to use or ownership rights of land?

The state may regulate the use of any land or any interest in or right over any land in the interest of defence, public safety, public order, public morality, public health or land use planning.

5. How can one acquire land in Kenya?

Land in Kenya can be acquired through;

- a. Allocation – a legal process of granting rights to an individual, groups of people or a company on defined public land.
- b. Land adjudication process - Land adjudication refers to the process of determining and recording of rights and interests of individuals on community land to facilitate registration of title.
- c. Compulsory acquisition - means the power of the State to deprive or acquire any title or other interest in land for a public purpose, subject to prompt and just payment of compensation.
- d. Prescription – can also be referred to as adverse possession. Provides that, when a person dwells on a parcel of land for a lengthy, continuous, uninterrupted period, they acquire proprietary rights over the property. In Kenya, this period is set at 12 years, subject to confirmation by the court of law.
- e. Settlement programs – this is a government initiative where land is allocated to landless individuals or communities.
- f. Transmissions/Succession – Is the process of transfer of interests (Rights, Restrictions, and Responsibilities) in land from a deceased person (a person registered as the proprietor) to his/her heirs after issuance and registration of Letters of Administration & Confirmation of Grant by the relevant court.
- g. Transfers – Is a Process of passing interests (Rights, Restrictions, and Responsibilities) in land from one party to another either by way of sale or gifting.

6. How can public land be allocated?

An individual, groups of people or company can be allocated public land through the following ways:

- a. Recommendation for allocation to the National Land Commission, from the County Executive Committee Member or the Cabinet Secretary responsible for matters relating to land.
- b. An individual, groups of people or company applying for allocation of land to the County Executive Committee Member (CECM-Lands) or the Cabinet Secretary (CS-Lands) responsible for matters relating to land.
- c. Upon meeting the conditions stipulated the CECM-Lands or the CS-Lands will forward a formal request to the Chairman, NLC.

7. In which ways can the County or National Government allocate public land in Kenya?

Public land belonging to the County or National Government can be allocated in the following ways:

- a. Public auction to the highest bidder at prevailing market value.
- b. Application confined to a targeted group of persons or groups in order to improve their disadvantaged position.
- c. Public notice of tenders.
- d. Public drawing of lots.
- e. Public request for proposals.
- f. Public exchanges of equal value.

8. What are the requirements for land allocation in Kenya?

- a. A recommendation/formal request from the County Executive Committee Member or the Cabinet Secretary responsible for matters relating to land.
- b. Approved Part Development Plan (PDP).
- c. Approved and authenticated Survey Plan.
- d. A ground status report from a NLC Land Administration Officer/ NLC County Coordinator.
- e. Copy of National ID.
- f. Copy of KRA Pin.
- g. Two coloured passport size photos.
- h. Where succession is involved, certified copy of certificate of confirmation of grant and letter of administration.
- i. If it is a limited company, current copy of CR12, certificate of incorporation, identification documents of at least two (2) Board of Directors.

9. How does the National Land Commission process an application for allocation of public land in Kenya?

Upon the receipt of the application, the Commission after carrying out its due diligence, it approves the request for allocation and issue a thirty (30) days' Notice of Intention to allocate which it publishes in at least two daily newspapers of nation-wide circulation.

If no appeals arise within the stipulated period, the letter of allotment is issued to the applicant.

10. Is an allotment letter proof of ownership?

No, an allotment letter is not proof of ownership but a letter of offer. If acceptance and payments are not submitted within the 90 days from the date of offer, then the offer will be considered to have lapsed.

11. What happens after expiry of the period of allotment letter if no acceptance is communicated?

Upon expiry, one will be required to reapply for a new allocation. After receiving a letter of allotment, one should accept the offer through a letter of acceptance, make the required payments and start the process of lease preparation.

12. What should be done after receiving the allotment letter?

- a. The beneficiary should write a formal letter of acceptance addressed to the Chairman of the National Land Commission (NLC). The Commission will then forward the letter of allotment to the Principal Secretary in charge of the State Department for Lands.
- b. Make Payments of statutory fees (as indicated on the letter of allotment) at the Ministry through ArdhiPay.
- c. The State Department will then request the Director of Survey to forward an amended Registry Index Map (RIM/Deed Plan).
- d. Upon receipt of the RIM/Deed plan, the Director, Land Administration at the Ministry, prepares a lease document and forwards the same to the Land Registrar for registration. The owner is issued with a copy of a 'Forwarding Letter' that s/he presents to the land registrar when collecting the lease document for execution.
- e. Upon the owner executing the lease documents, the land registrar issues a certificate of lease.

13. What is a renewal of lease?

Renewal of lease refers to reallocation of land to the immediate leaseholder. The National Land Commission is mandated to issue a public notice to the plot owners to apply for renewal of lease five years before expiry of the existing term.

Requirements for renewal of lease:

- a. Duly filled Form LA 23
- b. Approval from the respective County Government (Form PLUPA/DC/8)
- c. Ground status report from NLC Land Administration Officer or County Coordinator – NLC from the respective county
- d. Comments/Recommendation from County Executive Member-Lands
- e. Ground Status Report from NLC county coordinator
- f. Current Official search
- g. Copy of certificate of Title/lease
- h. Authenticated & approved survey plan (F/R) or an amended Registry Index Map (RIM)
- i. Identification Documents (Copy of National ID Card, KRA PIN Certificate, Coloured passport size photo)
- j. Succession documents (Certified/Original Certificate of confirmation of Grant and Letters of administration) where applicable
- k. CR 12 for companies
- l. Certificate of incorporation for companies
- m. Certificate of registration for groups/societies/SACCOs
- n. Certificate of names of trustees for groups/societies/SACCOs

14. What is extension of lease?

Refers to the application of additional years on the existing term of the lease.

15. What are the requirements of renewal and extension of lease?

To apply for renewal or extension of lease, one should have the following:

- a. The approval from the respective County Government (Form PLUPA/DC/8).
- b. Comments received from the following authorities: County Land Administration Officer, National Director of Physical Planning and Director of Survey.
- c. Official search document (of not less than three months).
- d. Planning brief.
- e. Newspaper advertisement.



Development Control

A. Subdivision and Amalgamation

16. What is subdivision?

This is the process of dividing one parcel of land into two or more viable parcels.

17. What is amalgamation?

Amalgamation of land is the consolidation/combining of two or more parcels of land which are adjacent to one another into one.

18. What is the process of subdivision and amalgamation of freehold land?

The process involves:

- a. An application for subdivision and amalgamation of land is submitted to the relevant county government and will be processed and approved in accordance with the laws relating to development control.
- b. Ascertainment of the viability of the subdivision and amalgamation from the relevant authorities or stakeholders.
- c. If the application is denied, the relevant county government shall notify the applicant of its decision, in writing, within thirty days of the decision by physical or electronic means, stating the reasons for refusal.
- d. Upon fulfilment of the requirements above, the applicant shall cause a survey to be carried out and submit a cadastral map and plan to the Chief Land Registrar for registration and issuance of the resultant title in accordance with approval conditions.
- e. The applicant shall be required to submit the existing certificate of title to the Chief Land Registrar in exchange for a new one.

19. What are the requirements for a subdivision and amalgamation?

The requirements for a subdivision and amalgamation include:

- 1) PLUPA/DC/8 from the respective County Government
- 2) Authenticated survey map from the Survey of Kenya
- 3) Planning Brief prepared by and signed by a registered and practising Physical Planner
- 4) Proof of development on the land
- 5) Subdivision/amalgamation scheme plan prepared and signed by a registered and practising Physical Planner
- 6) Land Control Board Consent (where applicable)
- 7) Certified copy of original title or certificate of lease
- 8) Current search
- 9) Copy of land rent clearance certificate, where applicable
- 10) Copy of land rates clearance certificate, where applicable

20. What is the process of subdivision and amalgamation of leasehold land?

The process involves:

- a. An application for subdivision and amalgamation of leasehold land shall be submitted to the county government in physical or electronic form.
- b. The county government shall, before granting approval for subdivision and amalgamation, seek representations from relevant authorities and stakeholders and physical or electronic form.
- c. Upon receipt of the representations, the county government may within thirty days, grant or refuse to grant the application.
- d. Where the application is not granted, the county government shall notify the applicant of the decision in writing by physical or electronic means within thirty days and set out the reasons for refusal.
- e. The county government shall forward an approval granted to the Cabinet Secretary by physical or electronic means who shall—
 - 1) cause the land to be re-surveyed and geo-referenced;
 - 2) cause the land to be revalued in order to ascertain the land rent payable and other requisite fees; and
 - 3) prepare subdivision, amalgamation, partition and reparation approval letters;
 - 4) prepare the subsequent lease and forward it to the Chief Land Registrar for registration in Form LA 29 as set out in the Third Schedule of the Land Regulations, No. 280 of 2017,
 - 5) The applicant shall be required to submit the existing certificate of lease to the Chief Land Registrar in exchange for a new one.

21. What payments are involved in subdivision and amalgamation?

- 1) Survey fees
- 2) Planning fees
- 3) Approval fees
- 4) Conveyancing fees
- 5) Registration fees
- 6) Rate and rent where applicable

22. What is the role of Land Administration officer in Development Control

- a. To conduct site visits and prepare a comprehensive ground report on the parcel.
- b. To facilitate issuance of Land Control Board Consent where applicable.
- c. To provide comments on the proposed development control.
- d. To issue both provisional and final approvals upon compliance with all conditions.
- e. To prepare the subsequent lease documents.

23. What is provisional approval?

The initial development control approval stipulating conditions to be fulfilled in accordance with the Lease.

24. What is a final approval?

This is a development control approval that allows for previous subdivision and amalgamation applications done upon fulfilment of provisional approval development conditions.

25. Who can initiate the final approval process?

The process can be done by any member of the public who had previously done a development control process for subdivision and amalgamation, has a provisional approval letter and had not acquired a final approval letter.

26. What are the requirements for final approval?

- 1) The provisional approval letter
- 2) The copy of the title
- 3) The county development approval.
- 4) The authenticated survey plan.

27. What are the payments to be done?

- 1) Approval fees applicable per subplot (child parcels) for previous subdivision or,
- 2) Approval fees applicable (main plots) for previous amalgamation
- 3) Any pending Land rent and rates.

B. Change of Use

28. What is Use?

The designated use of a registered parcel of land. For example, residential, commercial, industrial, agricultural, educational, and recreational. Other special users include Hospitals, hotels, petrol stations, and cemeteries etc.

29. What is change of use?

To change the initial/existing use of land to a new use. The new use must be harmonious with the neighbourhood character and form.

30. What is extension of user?

Extension of user means additional compatible use other than that registered user on the land while maintaining the dominance of the existing registered user on the same land. For instance, introducing a commercial user to the existing residential user.

31. Why do you need to change use?

A change of use becomes necessary when a new land use need emerges that was not anticipated during the preparation of the physical and land use development plan.

32. What is the process of change or extension of use?

- a. An application for change or extension of user on land is submitted to the relevant County Government by physical or electronic means.
- b. The County Government shall ascertain the viability of the application and seek representations by physical or electronic means from relevant authorities including;
 - The officer representing the national Director of Surveys in the county;
 - The officer representing the national Director of Physical Planning in the county;
 - The land administration officer of the national government in the county;
 - The Land Control Board, where applicable; and
 - Any other relevant authority.
- c. After review, the County Government may, within thirty days, approve or refuse to approve the application.
- d. Where the approval is not granted, the relevant County Government shall notify the applicant of the decision in writing by physical or electronic means within thirty days and specify the reasons for refusal.
- e. Where permission is granted, the relevant county government shall forward the approval to the Cabinet Secretary in physical or electronic form for processing.

- f. For freehold land, the Cabinet Secretary shall cause an endorsement to be prepared in Form LA 30 set out in the Third Schedule of the Land Regulations, which shall be forwarded to the Chief Land Registrar for noting in the register and the original certificate of title. For leasehold land, the Cabinet Secretary shall cause the land to be re-surveyed and geo-referenced, where applicable; cause the land to be revalued to ascertain the land rent payable and other requisite fees; and prepare the lease and forward it to the Chief Land Registrar for registration in Form LA 29 as set out in the Third Schedule of the Land Regulations.

33. What are the requirements for change of use?

- 1) Form PLUPA/DC/8 from the respective County Government
- 2) Planning Brief prepared by a registered Physical Planner
- 3) A location plan based on an up-to-date survey plan clearly indicating the subject area
- 4) Evidence of public participation including an on-site notice and newspaper advertisement
- 5) Proof of development on the land
- 6) Certified copy of title deed/certificate of lease
- 7) A current official search

C. Land Control Board

34. How is a land control board established?

A Land Control Board is established through a gazette notice by the cabinet secretary in charge of lands for every land control area or division.

35. What is the membership of a Land Control Board?

All members of the board shall be appointed by the cabinet secretary and shall include:

- a). Deputy County Commissioner (Chairperson)
- b). Land Administration Officer (Secretary)
- c). Sub-County Agricultural Officer
- d). Sub County Planner

36. What are the functions of the Land Control Boards?

The boards provide oversight over transactions affecting agricultural land through issuance of a consent. These transactions include sale, transfer, lease, mortgage, exchange, partition or other disposal of or dealings.

37. How does one apply for Land Control Board consent?

- a) An application for consent to a controlled transaction shall be done in accordance with Form 1 in the Schedule of the Land Control Regulations, and be accompanied by a fee of one thousand shillings.
- b) Every application for approval to a subdivision of land shall be accompanied by:
 - A suitable plan on durable material showing the manner of subdivision, the means of access to each subdivision and, very approximately, any existing permanent development; and
 - A statement in writing of the water supply which is available for the subdivisions and the use to which the subdivisions are proposed to be put.
- c) Every applicant shall furnish the land control board with such additional information as the board may from time to time require.

38. How does one appeal the decision of the Land Control Board?

- a) An appeal shall be in writing and shall specify the grounds of appeal; and an appeal to a provincial land control appeals board shall be sent to the Provincial Commissioner as chairman of the board, and an appeal to the central land control appeals board shall be sent to the Commissioner of Lands as secretary of the Board.
- b) An appeal to the central land control appeals board shall be accompanied by fee of KSh. 5,000 in respect of each transaction involved.
- c) An appeal to a Provincial Land Control Appeals Board shall be accompanied by a fee of KSh. 3,000 in respect of each transaction involved.

D. Role of County Governments in development control

39. What power(s) do the County Governments have over control and use of land?

The Physical and Land Use Planning Act (PLUPA) 2019, the Urban Areas and Cities Act (UACA) 2011 and the County Governments Act (CGA) 2012 give County Governments power to prohibit or control the use and development of land and buildings in the interest of proper, orderly, optimal land use, protect and conserve the environment, promote public safety and health, and promote public participation (both urban and rural areas).

40. What is a Local Physical and Land Use Development Plan (LPLUP)?

This is a land use development plan for an urban area prepared to guide and control development. It usually shows ten (10) different land use categories (zones) - i.e. residential, industrial, educational, recreational, public purpose, commercial, public utility, transportation, conservational and agricultural.

41. What types of applications require approval by the County Government?

- 1) Building plans
- 2) Sub-Divisions and Amalgamations
- 3) Renewal/Extension of Leases
- 4) Change of User/Extension of Use
- 5) Renovations
- 6) Outdoor advertisement

42. How do I make my application for development to the County Government?

Different County Governments have different methods for undertaking Development applications.

An applicant can only make an application through registered and licensed professionals as below:

TYPE OF APPLICATION	OUTPUT	PROFESSIONAL
Building Plans	Architectural Drawings	Architect
	Structural Drawings	Structural Engineer
Sub-Division & Amalgamations	Sub-Division/Amalgamation plan	Physical Planner
Renewal/Extension of Leases	Planning Brief	Physical Planner
Change of User/Extension of Use	Planning Brief	Physical Planner

43. Is there any payment required for processing of my application, and how do I make the payment?

Yes. The fees payable for the processing of various applications are provided for in the respective County Finance Act. For clarity, assessment of an application is done after payment has been made.

44. Why would my Building Plans not be approved within the stipulated time?

- a) The required documents have not been provided
- b) Not compliance to planning and building code standards (Adequate lighting; ventilation; room sizes; parking requirements etc.)
- c) Non-compliance with the Change of Use permit (PLUPA/DC/8)
- d) Failure by the Consultant Architect or Engineer to address comments raised in time as per a, b, and c above.
- e) Adverse comment(s) from institutions, organizations, or individuals that require further consultation

45. Why would my Change of User/Extension of Use not be approved within the stipulated time?

- The required documents have not been provided
- Failure by the Consultant Physical Planner to address comments raised in time.
- If the land is public or disputed
- If the proposal conflicts with the neighbourhood
- If the proposal does not comply with the existing county land policy, County Spatial Plans, and zoning guidelines
- Adverse comment(s) from institutions, organizations, or individuals that require further consultation
- Where no public participation has been done

46. Why would my Sub-Division/Amalgamation application not be approved within the stipulated time?

- a) The required documents have not been provided
- b) Failure by the Consultant Physical Planner to address comments raised in time.
- c) If the land is public or disputed
- d) If the proposal does not comply with the existing county land policy, County Spatial Plan and zoning guidelines
- e) Non-compliance with the planning standards (minimum plot size; minimum road width; plot shape; surrender for public utilities where applicable; riparian considerations)
- f) Adverse comment(s) from institutions, organizations, or individuals that require further consultation

For clarity, where required by the county executive committee member in consultation with the county director of physical and land use planning, suitable and adequate land shall be surrendered by the applicant at no cost to the County Government for open spaces, amenities, recreational facilities, excluding road reserves, a public purpose relating to the area to be subdivided or for road-widening.

47. Why would my Renewal of Lease/Extension of Lease application not be approved within the stipulated time?

- a) The required documents have not been provided
- b) Failure by the Consultant Physical Planner to address comments raised in time.
- c) If the land is undeveloped
- d) If any of the condition(s) of the subject lease has not been complied with
- e) If the Government requires the land for public good
- f) Adverse comment(s) from institutions, organizations, or individuals that require further consultation

48. What happens after I obtain my Building Plan approvals (Construction Permit)?

You are required to seek National Environment Management Authority (NEMA) and National Construction Authority (NCA) approvals before commencing the construction works.

49. Do I require County officials to undertake inspection of my construction works?

Yes. This is necessary for quality control and to ensure compliance to the approved plans. The developer is required to apply for inspection at each stage of development (Setting Out; Foundation; Walling; Roofing).

50. Is it possible for me to apply for amendment to my approved Building Plan?

Yes. Amendments must be within the planning and building standards/framework.

51. Do my approvals lapse?

Yes, after three years. One will then be required to apply for renewal.

52. Do I need permission to occupy my completed development?

Yes. The relevant county officials will inspect your building upon completion and, if satisfied, issue an occupation permit upon payment of prescribed fees.

53. What happens if I have developed or I am developing without County approvals?

It is an offense under the Physical and Land Use Planning Act, 2019 Section 57 (1).

54. What remedial measures are available to me if I had commenced works without approval or contrary to approved drawings?

A developer is required to stop further construction works and apply for regularization of the existing structure. Approval for such is subject to existing planning and building standards. In addition, the developer will be required to provide a structural integrity report.

55. What options are available to the Government in case I fail to comply with an enforcement notice issued?

- a) Arrest and arraignment in court
- b) Demolition of the illegal structure

56. How does the government manage riparian reserves?

- a) Physical and land use development plans shall be prepared to guide utilisation of land within riparian reserves in rural and urban areas and provide buffers for lakes, rivers, swamps and oceans beyond the riparian reserves where controlled development may be allowed.
- b) The plans prepared shall promote controlled utilisation of riparian reserves as recreational areas, open spaces, green ways and as utilities corridors among other sustainable uses.
- c) In connection with the utilisation of the riparian reserve or development of the area beyond the riparian reserve or both, the applicant shall be required to submit an Environmental Impact Assessment and Audit Report together with the development application.

57. Whom do I contact in case of any assistance?

You can visit your respective County Planning Office

58. What is a part development plan (PDP)?

This is a short-term plan prepared for the purpose of alienating public land. It is usually prepared for a specific parcel or parcels of land.

59. How can one get a PDP for his land?

This can be achieved through the following process;

- a. A request is made to the planning authority by the client
- b. The planning authority seeks concurrence from NLC, which then issues an authorisation letter for the preparation of the PDP
- c. Preparation of the PDP by the respective Director of Physical Planning Approval

E. Restraint of Land

60. What is a caveat and caution?

CAVEAT	CAUTION
The word Caveat means warning or proviso (something said as a warning, caution, or qualification). The lodging of a caveat over a property is a way of telling anyone who wants to deal with the property to be aware of the fact that someone else's interest already has priority. Caveats serve to prevent unauthorised dealings on the property and to alert others to the claimant's interest in the land.	A Caution is a notice in the form of a register to the effect that no action of a specified nature in relation to the land in respect of which the notice has been entered may be taken without first informing the person who gave the notice. A person who wishes to register a caution shall make an application to do so in Form LRA 67 set out in the Sixth Schedule of the Land Registration (General) Regulations 2017

61. Who can lodge a caution?

A person who wishes to register a caution shall make an application to do so in Form LRA 67 set out in the Sixth Schedule of the Land Registration (General) Regulations 2017. Examples of registrable-legitimate interests include:

- a. Purchasers' interest
- b. Chargees' interest
- c. Licensee's interest
- d. Beneficial interest
- e. Co-owner – joint owner
- f. Lessor – lessees' interest

62. Can one object to a caution?

Yes, the Registrar may object to a caution that is unnecessary or whose purpose can be affected by the registration of an instrument under the Land Registration Act 2012.

63. How can a caution be withdrawn or removed?

The Registrar may issue, upon receipt of an application, a notice to remove a caution or withdraw a caution.

- a. A caution may be withdrawn by a cautioner by submitting an application in Form LRA 69 set out in the Sixth Schedule of the Land Registration (General Regulation 2017).
- b. An application for removal of a caution shall be made in Form LRA 70 set out in the Sixth Schedule and may be removed by the order of the Land Registrar.
- c. A caution may be removed by order of the court by submitting LRA 66 set out in the Sixth Schedule. The application shall be accompanied by the court order, duly sealed, making specific reference to the parcel of land affected.

64. What is a restriction?

It is an order made by the Land Registrar prohibiting or restricting dealings with any particular land, lease or charge for the prevention of any fraud or improper dealing or for any other sufficient cause, either with or without the application of any person interested in the land, lease or charge, and after directing such inquiries to be made and notices to be served and hearing such persons as the Registrar considers fit.

65. How can a person remove or vary restrictions?

- a. The Registrar may, at any time and on application by any person interested or at the Registrar's own motion, and after giving the parties affected by the restriction an opportunity of being heard, order that the removal or variation of a restriction.
- b. Upon the application of a proprietor affected by a restriction, and upon notice to the Registrar, the court may order a restriction to be removed, varied, or other order as it deems fit, and may make an order as to costs.

F. Sectional Property

66. What is Sectional Property?

It is where a building is divided into units owned by individual proprietors and common areas owned by proprietors of the units as tenants in common. This is governed by the Sectional Properties Act, Cap 286.

67. Which land tenure types does Sectional property apply to?

- Freehold
- Leasehold with a minimum residual term of 21 years

68. What requirements must be met when developing a sectional property?

The parcel of land (mother parcel) must be properly geo-referenced and approved.

69. What is the process of creating a sectional development?

- a. A sectional plan describing two or more units is prepared by a surveyor from a building plan approved by the county government. This will require a land search, construction permit and the floor plans. Further, the physical structures must have been erected on the land.
- b. The application for registration of the sectional plan is lodged at the land registry for registration. The Registry Index Map will be amended upon registration.
- c. The application to register a sectional plan is accompanied by an application to incorporate a management corporation. A certificate of registration of the management corporation will be issued to the applicant.
- d. Once the sectional plan is registered, the land registrar is required to submit the registered plan to the county government for apportionment of rates within 21 days.

70. What is a management corporation?

The management corporation is a body constituted upon registration of the Sectional Plan, consisting of unit owners responsible for managing the common properties and resolving disputes through an internal committee.

71. What happens after registration of a sectional plan?

- The mother title deed is surrendered to the land registry and its register closed
- A separate register is opened for every sectional unit.
- Issuance of sectional titles or leases
- The interests registered against the mother title (e.g charges, easements etc.) are endorsed on the sectional title documents.

72. Are title documents issued for sectional units?

Yes. Where the land is freehold, each sectional unit owner will be issued with certificates of title and where the land is leasehold, the sectional unit owners will be given certificates of lease.

73. Who pays land rent and land rates in a sectional development?

Each sectional unit owner will be responsible for payment of land rent and rates for their individual unit. This will no longer be the responsibility of the management entity.

74. How do I convert leases registered under LRA to sectional titles?

Conversion may be initiated by a developer, the management company or an owner of a sectional unit for long term leases of a period of 21 years and above.

G. Protection of Public Land

75. Why is it important to protect public land?

The protection of public land: is paramount to safeguard national resources, ensure equitable access for all citizens, prevent unlawful encroachment or alienation, and preserve the integrity of land designated for public use, in accordance with constitutional mandates and relevant statutory provisions, including those under the National Land Commission Act.

76. What is public land grabbing?

Public land grabbing is the fraudulent or illegal acquisition of land meant for public use by private individuals, businesses, or government officials. It is illegal because:

- a. It denies communities access to essential services such as schools and hospitals
- b. It violates the Constitution and land laws of Kenya.
- c. It fuels corruption and weakens land governance.
- d. It disrupts planned development and urban planning.

77. What are the consequences of illegal land acquisition (grabbing) of public land in Kenya?

- a. Violation of Constitutional Rights: illegal public land acquisition undermines the constitutional right to access public resources, as enshrined in Article 62 of the Constitution of Kenya;
- b. Loss of Public Resources: Illegally acquired public land leads to the deprivation of land designated for public use, adversely affecting infrastructure, services, and community development.
- c. Legal Penalties: illegal public land acquisition (grabbing) constitutes an offence under the Land Act 2012, and may result in criminal prosecution, including imprisonment or fines.
- d. Undermines Land Reform Efforts: illegal public land acquisition disrupts the fair and equitable distribution of land resources, hindering land reforms aimed at ensuring justice and addressing historical injustices.
- e. Environment Degradation: Unlawful occupation and misuse of public land may lead to environmental harm, violating environmental protection laws and regulations.

78. What legal measures exist to prevent illegal land acquisition (grabbing)?

- a. The Constitution of Kenya (2010) – Defines and safeguards public land.
- b. The Land Act (2012) – Guides land transactions and allocation.
- c. The National Land Commission Act (2012) – Empowers the NLC to investigate and recover illegally acquired (grabbed) land.
- d. The Environment and Land Court Act (2011) – Establishes a legal framework for resolving land disputes.

79. What are the penalties for illegal land acquisition (grabbing) of public land?

1. Immediate revocation of fraudulent land titles.
2. Prosecution under land and anti-corruption laws.
3. Heavy fines and jail terms.
4. Demolition of illegally built structures.
5. Being blacklisted from future land transactions.

80. How/Where can the public report cases of illegal land acquisition (grabbing)?

- a. Kenyans can report suspected land grabbing through:
- b. Ministry of Lands
- c. The National Land Commission (NLC) complaint portal or offices.
- d. The Directorate of Criminal Investigations (DCI).
- e. The Ethics and Anti-Corruption Commission (EACC).
- f. County governments and local administration offices.

Land Conflict Prevention Mechanisms

81. What are some best practices for preventing land conflicts?

- a. Transparent land registration and titling to clarify ownership
- b. Recognizing and formalizing customary land rights
- c. Inclusive land governance involving all stakeholders
- d. Fair compensation and resettlement policies for displaced persons
- e. Strong legal enforcement to deter illegal land allocation and corruption

82. How can fraudulent land transactions be prevented?

- a. Enhance land registries by digitizing and securing land registries to prevent fraud.
- b. Implement strict verification mechanisms for land ownership and transactions.
- c. Promote public awareness by educating citizens on land rights and fraud risks.
- d. Enforce land laws by applying stringent penalties for fraudulent land dealings.
- e. Foster stakeholder cooperation by ensuring coordination among authorities to monitor and address cases of fraud.

83. What are the most common types of land fraud?

- a. Fake title deeds – Forging or tampering with land ownership records.
- b. Selling non-existent land – Conmen selling land that does not exist.
- c. Multiple sales of the same land – Different buyers receiving fake ownership documents for the same land.
- d. Illegal Land acquisition (grabbing) – Fraudulently acquiring public or private land.
- e. Forgery of documents – Altering land records to change ownership illegally.
- f. Bribery and corruption – Paying off land officials to manipulate records.

84. How can one verify the authenticity of a title?

- a. Check on the Ardhisasa platform
- b. Visit the local land registry with the title deed and conduct a search.
- c. Engage a licensed lawyer or land surveyor to conduct due diligence.
- d. Cross-check land details at the National Land Commission (NLC) if the land is public.

85. What is double allocation of land and how can it be prevented?

- a. Double allocation of land: Refers to the unlawful practice of granting the same piece of land to two or more individuals or entities. Resulting in conflicting claims of ownership or occupation. This contradicts Section of the Land Act, 2012, which mandates clear and unambiguous registration of land transactions to ensure secure title and prevent multiple claims.
- b. Prevention: To prevent double allocation, the government must enforce stringent land registration processes, including rigorous title verification and the use of land maps, as stipulated in the Land Registration Act 2012. Additionally, promoting transparency in land transactions, enhancing due diligence by officials, and leveraging technology such as digital land registries can significantly reduce the risk of double allocation.

86. What role does succession planning play in preventing land disputes?

- a. Clarifies ownership and entitlements: Succession planning ensures clear documentation of land ownership and inheritance, reducing ambiguities and potential disputes over land rights as required under the Law of Succession Act, Cap 160.
- b. Promotes legal distribution of property: Proper Succession Planning facilitates the equitable distribution of land among heirs according to the wishes of the deceased, preventing conflicts among beneficiaries under the provisions of the Succession Act.
- c. Reduces fraudulent claims: By formalizing inheritance through legal wills and succession procedures, succession planning mitigates fraudulent claims on land, which could otherwise lead to disputes, in accordance with the Land Registration Act.
- d. Upholds the Rule of Law: Ensures succession is conducted in accordance with legal procedures under the Law of Succession Act, guarantees the rule of law and guarantees that land rights are protected and respected.
- e. Promotes Dispute Resolution Mechanisms: Proper succession planning encourages the use of formal dispute resolution mechanisms, such as the courts or mediation, to resolve conflicts, ensuring fair and just outcomes under Kenyan Law.

87. Where can one access more information on land fraud prevention?

One can access more information on land fraud prevention from the offices listed below, as well as their respective websites:

- a. State Department of Lands; (MOLPP)
- b. National Land Commission (NLC);
- c. The Kenya Law Reports;
- d. Office of the Attorney General
- e. County Governments;
- f. Inter-Governmental Relations Technical Committee (IGRTC)
- g. Community Level Resources



Frequently Asked Questions on Compulsory Land Acquisition

88. What is compulsory land acquisition?

This is the acquisition of private/community land by the government for public use or for a public purpose but subject to prompt payment of just compensation. The acquired land will be put into public use like education, health facilities, security installations, and infrastructure (roads, rail, electricity) among others.

89. Which body is mandated to carry out compulsory acquisition?

The only body mandated to compulsorily acquire land on behalf of national and county governments is National Land Commission.

90. Who is a Project Affected Person?

Project Affected Person (PAP) means a person, community or company who on account of the project, would have his or her:

- 1) Standard of living adversely affected; or
- 2) Right, title or interest in any house, or interest in or right to use any land (including premises, agricultural and grazing land) or right in annual or perennial crops and trees or any other fixed or movable asset, acquired or possessed, temporarily or permanently; or
- 3) Business, occupation, work or place of residence or habitat adversely affected, temporarily or permanently.

91. What are the mandatory documents required from the acquiring body?

- a. A request letter from the respective Cabinet Secretary (for national government) or the CEC member in charge of Lands for County Governments.
- b. A Land Acquisition Plan (to scale) showing how the proposed infrastructure excises each land parcel, part development plan or Cadastral drawings.
- c. Parcel list detailing land parcel numbers, the registered owner, total area and affected area of each land parcel.
- d. The Environmental and social Impact Assessment Report (ESIA) and appropriate approvals/certification for the project
- e. Official searches of affected land parcels.
- f. Commitment letter from the acquiring authority confirming availability of funds for the project
- g. Resettlement Action Plan (RAP) Report where applicable.

92. What are the mandatory documents to be submitted by the PAP;

- a. Land ownership documents; title deed, lease, allotment, search
- b. Document confirming interest in land (agreement, sublease, permits etc)
- c. Personal identification documents; KRA Pin, ID Card, Bank Details
- d. Claim forms (written/ verbal) and valuation reports
- e. Any rejection or objection or disputes

93. What are the steps of compulsorily acquiring land?

- a. **Step 1:** Formal request to the Commission by any government ministry or county government. The request should prove that the land is needed for public purpose.
- b. **Step 2:** Consideration by the Commission and Approval if it meets the Constitutional and Statutory threshold (public purpose).
- c. **Step 3:** Publication of Notice of Intention to acquire land is published in the Kenya Gazette. The Commission will undertake public sensitization and participation.
- d. **Step 4:** Ground inspections and valuation to record any improvements affected by the proposed project.
- e. **Step 5:** Publication of Notice of Inquiry in Kenya Gazette, service of notice and holding of inquiry: This allows persons interested in the subject land to submit their land ownership documents, personal identification documents, written claims and disputes.
- f. **Step 6:** Serving of an award of compensation to every person determined to have an interest in the land either directly or indirectly.
- g. **Step 7:** Payment of compensation.
- h. **Step 8:** Serving Notice of Taking Possession.
- i. **Step 9:** Final Survey and vesting of the acquired land to the acquiring body.

94. What is compensated for during compulsory acquisition?

- a. The Following are the items that are compensated:
 - 1) “Market value” which means the price of the land as at the date of Publication in the Gazette notice of intention to acquire.
 - 2) Damage sustained or likely to be sustained by persons interested at the time of the Commission’s taking possession of the land by reason of severing the land from his or her other land;
 - 3) Damage sustained or likely to be sustained by persons interested at the time of the Commission’s taking possession of the land by reason of the acquisition injuriously affecting his or her other property, whether moveable or immovable, in any other manner or his or her actual earnings;
 - 4) Reasonable expenses incidental to the relocation any of the persons interested or who will be compelled to change residence or place of business/livelihood as a consequence of the acquisition;
 - 5) Damage genuinely resulting from diminution of the profits of the land between the date of publication in the Gazette of the notice of intention to acquire the land and the date the Commission takes possession of the land.
 - 6) 15% statutory disturbance allowance.
 - 7) Other expenses incurred as a result of the acquisition e.g. profession fees etc.

95. How long does the acquisition process take for the PAPs to receive his/her payment?

The entire acquisition process takes a minimum of twelve (12) months and a maximum of 24 months depending on the magnitude of the project. Below is a tabulation of the process flow;

- a. Month 1 – Submission of mandatory documents for initiation of acquisition
- b. Month 2,3 & 4 – Gazettment of intention to acquire, Service of gazette notices to PAPs & Interested parties, public participation and sensitization and Inspections for valuation.
- c. Month 5 – Gazettment of inquiry
- d. Month 6&7 – Service of inquiry notices to PAPs and interested parties, conducting inquiry as scheduled.
- e. Month 8-Valuation compilation and collation of inquiry data
- f. Month 9 – approvals of awards
- g. Month 10-Requisition of compensation funds
- h. Month 11-12 – Issuance of awards, Due diligence & Payment

96. How do PAP's participate in the acquisition process?

- 1) To be taken through the acquisition process.
- 2) To be involved in inventory taking during the process of inspections.
- 3) To participate during public awareness barazas directly or through Community Land management committees.
- 4) To participate in identifying Corporate Social Responsibilities (CSR) activities.

97. Is there negotiation between the Government and the affected persons as to the amount of compensation to be paid?

No, the amount of compensation is calculated by qualified valuation staff of the National Land Commission in line with provisions of the Law. The Commission is independent of the acquiring body and is therefore expected to be objective.

98. If one is dissatisfied with the award given, what redress options are available?

- 1) Seek clarification from the Commission as to what has been factored in the determination of compensation.
- 2) Ensure that the details of improvements affected are correct and as captured on the ground by the valuer.
- 3) Ensure the land acquired in terms of size tallies with the Kenya gazette notice.
- 4) If all the details are correct and an award to that effect has been issued, then one is given a statement form on which one signifies by signing their acceptance or rejection of the award within 14 days.
- 5) The last resort is to prefer a case in the Land Acquisition Tribunal, and in case of dissatisfaction with the Tribunal appeals can be made to Environment and Land Court once one rejects the award.

99. What happens to contested awards?

Any rejection or contestation of amount contained in the award shall be referred to Land Acquisition Tribunal. The Tribunal will give an audience to all the parties.

100. What is the cut off time to take into account in determining whether recent improvements done on land are eligible for compensation?

The value increase occasioned by any development or improvement to the land within two years prior to the date of publication in the *Gazette* of the notice of intention to acquire the land, unless it is proved that the improvement was made *bona fide* and not in contemplation of proceedings for the acquisition of the land.

101. What will happen to the acquired land title deed after acquisition?

If part of the land comprised in documents of title has been acquired, the Commission shall as soon as practicable, cause a final survey to be made of all the land acquired. Excision and issuance of new titles upon completion of final survey. The Commission shall undertake to have new title documents issued for every affected parcel as soon as practicable (free of charge).

102. Who holds the interests if the land is unregistered?

The constitution recognizes any person who lives on any land with or without any registrable documents. The “occupiers in good faith” are also considered and compensated. In case of the unregistered land, the host county government is entitled to receive compensation funds and hold on behalf of the community as a trustee until the community is registered and funds transferred to them. The County Government powers on community land is only limited to receive compensation funds.

103. What is the process of acquiring community land?

Compulsory land acquisition of community land follows the same process as compulsorily acquiring a PAP’s land until funds are paid to the Community’s Account.

The only deviation is the receiving person:

- a. In case of the unregistered land, the host county government is entitled to receive compensation funds and hold the same on behalf of the community as a trustee until the community is registered and funds are transferred to them. The County Government’s powers on community land are limited to receiving compensation funds.
- b. In case of registered land, the compensation will be paid direct to the community’s account

104. How does the National Land Commission determine compensation for diminution or loss of business?

In determining the compensation due for diminution of the profits of the land, the Commission shall require proof of existence of the profits including evidence of tax returns for the affected enterprise. Where such evidence is not provided, loss of profit is only given a nominal amount.



Frequently Asked Questions on Community Land

105. What is a community?

A Community is a group of people with common ancestry, culture, language or similar interests (Community of interests).

106. What is a community according to the Act?

A community is a group of people or land users who are citizens of Kenya sharing any of the following characteristics:

- a. Common ancestry
- b. A unique culture
- c. Similar socio-economic factors
- d. Occupy a geographical/ ecological space location
- e. Ethnicity

107. What is community land according to the Community Land Act?

Community land consists of:

- a. Land lawfully registered in the name of group representatives
- b. Land lawfully transferred to a specific community by any process of law
- c. Any other land declared to be community land by Act of parliament,
- d. Land that is lawfully held, managed or used by specific communities as community forests, grazing areas and shrines
- e. Ancestral lands and lands traditionally occupied by hunters - gatherers communities
- f. Land that is lawfully held as trust land by the county governments excluding any public land

108. What are the categories of community land in Kenya?

Community land falls into three categories:

- a. Registered Community Land – Land with an official registration title held by a specific community, making it private to that community. The acquisition process is similar to private land
- b. Unregistered Community Land – Land not officially titled but traditionally associated with a known community
- c. Community land is governed by communities using customary or community laws

109. What does the Community Land Act 2016 provide for?

- a. It provides for the recognition, protection and registration of community land rights
- b. Management and administration of community land
- c. The role of county government in relation to unregistered community land

110. Which laws have been repealed by the Community Land Act?

- a. Group (Representatives) Act Cap 287 (former group Ranches)
- b. Trust Lands Act Cap 288 (Trust Lands)

111. How is a community land registered in Kenya?

- a. A community identifies land traditionally or historically used for communal purposes
- b. A community notifies the Community Land Registrar through form CLA1 with attachments of community land sketch map, locality, approximate area and current land use
- c. Upon receipt of form CLA1, the Registrar Publishes a notice inviting the community for a meeting to elect a Community Land Management Committee (CLMC)
- d. The community elects Community Land Management Committee (CLMC) members through secret ballot or through any agreed method
- e. The Community Land Management Committee (CLMC) submits an application to the Registrar for registration of community land through form CLA3
- f. The Registrar Issues Certificate of Registration of Community through form CLA4.
- g. Form CLA 2 is used to notify the relevant authorities of changes in the composition of the Community Land Management Committee, ensuring proper documentation and updates

112. Who owns community land?

Before registration of community land, it is held in trust by the respective county governments. After registration the land is owned by the respective registered community.

113. Who keeps the community land title?

The Community Land Management Committee – CLMC

114. What is the management and administration structure of community land? (within the community)

Within the community

- a. Community Assembly (CA) (Governing organ) - It is a gathering of registered adult members of a community
- b. Community Land Management Committees (CLMC) (Administrative Organ)

Outside the community:

- a. County governments
- b. The national government through the Ministry of Lands and Physical Planning (MLPP) and the National Land Commission (NLC), the Judiciary.

115. What is a Community Assembly?

It is a gathering of registered adult members of a community convened in accordance with this Act

116. What are the functions of a Community Assembly?

- a. Elect 7-15 members of Community Land Management Committee (CLMC)
- b. Approve any allocation or conversion of community land
- c. Validate claims of existing customary rights of occupancy
- d. Establish investment partnerships

117. What are the functions of a CLMC?

- a. Apply for registration of community land
- b. Draft rules and by-laws of operation of the community
- c. Manage day to day activities on Community Land on behalf of Community
- d. Maintain register of community members
- e. Maintain assets
- f. Record customary rights and allocation of community land
- g. Cause preparation of physical development plans for Community Land
- h. Cause preparation of physical development plans for land to be allocated
- i. Protect environment and natural resources
- j. Establish investment partnerships
- k. Apply alternative dispute resolution mechanisms to address emerging conflicts

118. Who qualifies for election as a member of the Community Land Management Committee?

- a. An adult member of the community
- b. Community member that meets the requirements of Chapter VI of the Constitution of Kenya
- c. A community member that has not been adjudged bankrupt
- d. A community member that has not been convicted of a crime involving fraud or dishonesty.

119. How does the office of the Community Land Management Committee become vacant?

- a. If an elected member dies
- b. By notice in writing addressed to the Committee, the member resigns from office
- c. If the elected member is incapable of performing the duties of the office
- d. If the term of office of the holder expires (not renewed after three years in office)

120. What is the role of County governments with regard to Community Land?

- a. Hold in trust all unregistered community land
- b. Ensure any transactions on unregistered Community land are undertaken in accordance with the Act
- c. Hold in trust monies payable for Compulsory Acquisition of unregistered Community Land
- d. Release to communities all monies payable for compensation for compulsory acquisition of unregistered Community Land and interest upon registration of communities
- e. Consult with the Cabinet Secretary and NLC in establishment of Community Land Registration Units

- f. Submit inventory of unregistered community land to Cabinet Secretary for registration of Community Land
- g. Prepare comprehensive Adjudication Programme in consultation with Cabinet Secretary and communities
- h. Approve physical developments for community land
- i. Undertake continuous awareness programmes

121. What is the content of an inventory?

- a. Name of community
- b. Register - Names of all members
- c. Locality
- d. Approximate area and current use of the land
- e. Any claims by any other persons/groups in respect of that land

122. Can the County Governments (trustees) dispose of community land?

No. Community land shall NOT be disposed of or otherwise used except in terms of legislation specifying the nature and extent of the rights of members of each community individually and collectively.

123. Is it possible to convert community land to public or private land?

Yes. Community land may be converted to public or private land through compulsory acquisition, transfer, surrender, or allocation by the Community Land Management Committees but this has to be agreed upon through a Community Assembly.

124. What are customary Land Rights?

They are rights derived from customary laws, customs or practices.

125. Can a community member be allocated part of the community land for exclusive use and occupation?

A Committee may upon application and with approval of the community assembly may allocate part of the community land to a member or a group of members of the community for exclusive use and occupation but no separate title shall be issued for such a parcel e.g. grazing rights, cultural or religious rights.

126. In what ways can a person become a member of community land?

- a. By registration during the initial registration of the community
- b. By birth
- c. By marriage
- d. By inheritance
- e. By acceptance of the community land management committee (CLMC) after the approval by the community assembly.
- f. By a court order.

127. How does one cease to be a community member?

- a. By death
- b. Own volition
- c. Remarriage of a woman whose spouse and member of the community dies

128. Who constitutes a community land register?

All persons in that community including children.

129. How will the natural resources, land use planning and investments in community land be managed?

- a. Natural resources within the community shall be managed sustainably, with accountability and transparency and should benefit the whole community on the basis of equitable sharing
- b. Any investment relating to exploitation of natural resources shall be agreed between the investor and the community subject to Article 71 of the Constitution
- c. Benefit sharing will be as per the specific laws of income sharing with the investor

130. How are disputes in relation to community land handled?

- a. Traditional dispute and conflict resolution mechanisms
- b. Internal Dispute Resolution Mechanisms set out in community by-laws
- c. Use of prevailing customary law by court or dispute resolution body so long as it is not repugnant to justice & morality or inconsistent with Constitution
- d. Mediation
- e. Arbitration
- f. Referring outstanding matters to court.

131. How does the community land act ensure that the interest of women/marginalized vulnerable groups/PWDs are taken care of?

- a. The act provides that all natural resources will be managed sustainably to and should benefit the whole community on the basis of equitable sharing.
- b. The act has introduced the principle of 2/3rds gender rule which will apply in all the committees formed to manage community land.

132. How often is the register of members updated?

It's updated annually (every year). The Committee shall present before the community assembly, the list of new members to be admitted or removed for approval

133. What is the management and administration structure of community land?

(Within the community)

- a. Community Assembly (CA) (Governing organ)
- b. Community Land Management Committees (CLMC)

(Administrative Organ)

- a. The Executive offices of the CLMC (outside the community)
- b. County governments
- c. The national government through the Ministry of Lands and Physical Planning (MOLPP) and the National Land Commission (NLC), judiciary

134. How is the community land registered?

- a. Upon registration of a community the Cabinet Secretary publishes a notice of intention to adjudicate and register community land.
- b. The adjudicated team demarcates the land excluding public purpose and any adjudicated public land
- c. A cadastral map is prepared and presented to the Community Land Registrar for registration

135. How are overriding interests recognized during demarcation?

- a. The notice published by the Cabinet Secretary for adjudication of the land will invite people with interest over the land to lodge their claims
- b. The application for the claim will be made to the adjudication team in CLA8.
- c. If the application is approved the land is excluded from the community land

136. What is adjudication of community land?

It is the process of ascertaining rights and interests in community land. It is done by the adjudication team from the national government.

137. Do Community Land Management committee conduct annual general meeting (AGM)?

An AGM for the community assembly should be held once a year.

138. Can CLMC form sub committees?

Yes. It may establish sub committees to address specific key issues and interests in community land



Frequently Asked Questions on Gender Land Rights

139. Who can own land in Kenya?

Every person (including women), has the right either individually or in association with others, to acquire and own property of any description in any part of Kenya.

140. Why is it significant for women to have access and control over land?

Women have the right to access land, use land and exercise control over land. These gives them the ability to; generate income, improve their families' well-being, and gain political influence. Land ownership also enables women to access credit, implement sustainable farming practices, and secure legal protection. It also promotes gender equality by reducing poverty and vulnerability.

141. What is a matrimonial home/property?

It means any property that is owned or leased by one or both spouses and occupied or utilized by the spouses as their family home, and includes any other attached property.

142. What are some of the rights of spouses concerning matrimonial property?

Spouses have equal rights to matrimonial property as per Article 45(3) of the Constitution. Ownership is determined by contribution which can be monetary or non-monetary. Spousal consent is required for the sale, transfer, subdivision, or charging of matrimonial property.

143. What happens where a husband or wife has acquired property before or during marriage which does not become a matrimonial property?

Before Marriage: Any property remains the sole property of the acquiring spouse, unless it is converted into matrimonial property through contribution or agreement.

During Marriage: Property acquired may remain separate if it is not jointly owned or used for the benefit of the marriage.

144. What does the spouse liability law state?

- a. Any liability incurred by a spouse before the marriage and relating to the property shall, after marriage, remain the liability of the spouse who incurred it.
- b. If the property becomes matrimonial then the liability will be equally shared by the spouses and unless they otherwise agreed.
- c. Parties to marriage shall equally share the liability incurred during the subsistence of the marriage for the benefit of the marriage or reasonable and justifiable expenses incurred for the benefit of marriage.

145. What happens to matrimonial property in case of divorce?

- a. Both spouses share benefits and liabilities attached to matrimonial property, depending on their contribution.
- b. Matrimonial property is not automatically shared equally upon divorce. Instead, it is divided based on each spouse's contribution, whether monetary or non-monetary.

146. What rights do women - single, married or widowed have?

- a. Women have a right to acquire and own land whether individually or as a group.
- b. Daughters have the right to inherit their parents' land and property.
- c. Women have a right to be elected and or appointed into land governance institutions.
- d. Married women have the right to joint ownership of land and property acquired during marriage.
- e. Married women have the right to transact on land in consultation with their husbands and vice versa.
- f. Widows have the right to inherit their deceased husband's land and property

Children Land Rights

147. Who is a 'child'?

An individual who has not attained the age of eighteen years in Kenya.

148. Can a child own property?

Children cannot own land or property in their own right as children. However, land and property can be held in trust for their benefit and use.

149. What are land rights as relating to orphans?

Orphans have the right to access and use their parents land and property whether or not it is held in trust by an appointed and responsible adult member of the immediate family. Upon reaching the age of 18, they have the right to be registered.

150. What are the land rights as they relate to the youth?

A youth is defined as a person between the ages of 18 and 35 years. Some of the rights include;

- 1) Though the right to inherit from their parents is discretionary, in the event of inheritance, both daughters and sons have equal rights.
- 2) Each youth has the right to ownership, access and control of land and property.

Land Rights of Marginalized Communities/Minority Groups

151. What is a marginalized community/minority group?

- a. A community that, because of its relatively small population or for any other reason, has been unable to fully participate in the integrated social and economic life of Kenya as a whole; or
- b. A traditional community that, out of a need or desire to preserve its unique culture and identity from assimilation, has remained outside the integrated social and economic life of Kenya as a whole; or
- c. An indigenous community that has retained and maintained a traditional lifestyle and livelihood based on a hunter or gatherer economy; or
- d. Pastoral persons and communities, whether they are nomadic or a settled community that, because of its relative geographic isolation, has experienced only marginal participation in the integrated social and economic life of Kenya as a whole;

152. What is a marginalized group?

It is a group of people who, because of laws or practices before, on, or after the effective date, were or are disadvantaged by discrimination on one or more of the following grounds; including race, sex, pregnancy, marital status, health status, ethnic or social origin, colour, age, disability, religion, conscience, belief, culture, dress, language or birth.

153. What are the specific rights as they relate to marginalized/minority groups?

- a. Right to participate in economic activities in the country
- b. Right to preserve their cultural way of life in line with article 11 of the Constitution
- c. Right to representation in land governance institutions and participation in land related decision-making processes.
- d. Right of access to the shore lines of lakes and rivers and public fish landing sites for fishing communities to enable them carry out their economic activities.
- e. Right of access to community forests for hunter gatherers communities to sustain their livelihoods.
- f. Right of access to communally held land for grazing purposes for the Pastoral communities.



Frequently Asked Questions on Succession and Wills in Relation to Land

154. What is the law of succession and how does it apply?

The Law of Succession is the law regulating the inheritance of property. The Law of Succession Act applies universally to all Kenyans. This is basically the substantive law dealing with matters succession in Kenya. It's important to note that this law has to be quoted first before other laws that might equally be affecting matters succession.

155. How is the property of a deceased person handled?

Immovable property in Kenya of a deceased person whatever the residence of that person at the time of his/her death will be regulated by the Kenyan law on succession and on the other hand, movable property of a deceased person is regulated by the law of the country of the residence of that person at the time of his/her death.

156. What is testate succession?

Testate succession is where the deceased leaves a written or oral will. It is important to note that the deceased must have had the capacity (sound mind and off age) to make the will at the time of making the will. In other words, the deceased must have had the knowledge and approved the contents of the will.

157. What is intestate succession?

Intestate succession is where there is no will left by the deceased. It applies where the deceased has left a surviving spouse and a child or children. In this regard, the surviving spouse shall be entitled to: -

- a. The personal and household effects of the deceased and,
- b. The intestate property but cannot sell this property. This is because the spouse is only holding it on behalf of the children. If the spouse remarries, he/she loses her entitlement to the intestate property.

The Will

158. What is a will?

A will is a mere intention of the maker. It can be amended by the same person during his/her life time, or may through his/her will appoint an executor who has the legal responsibility to take care of a deceased person's remaining financial obligations e.g. property disposal, paying bills, taxes etc.

159. Who can make a will?

Any person can write a will at any time as long as they are of sound mind, and are 18 years old and above.

160. When does the will take effect?

The will being an intention of the maker, it can only take effect after the death of the maker. (testator/ testatrix).

161. Where can one keep the will?

Store your will in a place where it is safe and easy to access:

- a. Filed with courts
- b. With your lawyer
- c. A safe place at home

162. What are the benefits of making a will?

- a. The deceased can exercise control over property
- b. It can help avoid courts from determining who is entitled to property
- c. Enable appointing property representatives of choice
- d. Avoiding disputes over property
- e. Persons outside family can have property
- f. The deceased can decide on how he/she can be disposed of.

163. What are invalid wills?

This is a will prepared under any of the below circumstances:

- a. Fraud / forgery
- b. Coercion
- c. Mistake / duress / undue influence
- d. If the person is not of sound mind

164. Is an Oral Will Valid?

It is only valid if;

- a. Made before 2 or more competent witnesses;
- b. The maker dies within 3 months of making it;
- c. An oral will has been made by a member of the armed forces during a period of active service and/ or if the maker of the will dies during the same period of active service even if he / she dies more than 3 months after making the will;
- d. If there is any conflict in evidence of witnesses as to what was said by the deceased, the oral will shall be valid only if the contents can be proved by a competent independent witness.

165. What is a written will?

A written will must have the following characteristics:

- a. It must be signed by the maker.
- b. In case it's signed by somebody other than the maker, then this should be done in the presence of the maker and under his/her directions.
- c. It must be witnessed by two or more witnesses and these witnesses MUST NOT be beneficiaries in the will otherwise there shall be need of an additional two witnesses.
- d. If the maker of the will refers to another document in his will, the document shall be considered as part of the will as long as it is verified that it is the exact same document the maker was referring to in his/her will.
- e. An executor shall not be disqualified as a witness to prove execution of the will or to prove the validity or invalidity of the will.
- f. If the dependant or dependants feel that the deceased's will does not provide adequately for their needs, they may make an application to the Court.
- g. The Court may order a specific share of the property be given to the dependent (s) or periodical payments or lump sum payments.

166. What does "dependants" mean?

It means:

- a. The wife or wives, or former wife or wives, and the children of the deceased whether or not maintained by the deceased before his death.
- b. The deceased's parent, step-parents, grand-parents, grandchildren, step-children, children whom the deceased had taken into his family as his own,
- c. Brother and sisters, and half-brothers and half-sisters, who were being maintained by the deceased before his death.
- d. Where the deceased is a woman, her husband if he was being maintained by her before her death.

167. Revocation, alteration and revival:

A will can be revoked, altered and revived only by the maker at the time when he is competent to dispose of his property. This can only happen when the maker takes some action to indicate that he/she no longer wants the will to be binding. For this to be effective, the intent of the maker, whether express or implied must be clear and an act of revocation consistent with this intent must take place.

168. How intestate property is distributed when there's no surviving spouse?

Where the deceased has left a surviving child or children but no spouse, the intestate property will be transferred to the surviving child or divided equally among the surviving children.

169. How intestate property is distributed when there's no surviving spouse children?

Where the deceased left no surviving spouse or children, the intestate shall be transferred in this order of priority:

- a. Father; or if dead,
- b. Mother; or if dead
- c. Brothers and sisters, and any child or children of deceased brothers and sisters, in equal shares; or if none
- d. Half-brothers and half-sisters, and any child or children of deceased half-brothers and half-sisters, in equal shares; or if none
- e. Distant relatives up to the sixth degree in equal shares.

If the deceased is not survived by any of the above, then the intestate property estate shall be taken up by the state.

170. What happens in a case of polygamy in the Intestate situation?

The personal and household effects of the deceased and the residue of the estate is distributed according to the houses. Houses refer to each of the children together with their mother. The provisions apply where the deceased was legally married in a system of law that recognizes polygamy. If a dispute arises during the succession process, the court will intervene to resolve the disputes and ensure a fair distribution of the estate.

The Process of Succession

171. What is the process of succession?

- a. Interested parties, whether family members or an individual, should start by carrying out a search on the property before the succession process begins. Search authenticates the ownership of the property.
- b. Interested parties meet to discuss the succession process including putting all the documents together. These include the list of the deceased properties and their values, list of the deceased liabilities, list of the beneficiaries and their dependents, witnesses and the original death certificate. Evidence of this meeting must be captured in minutes.
- c. The minutes and the documents, accompanied by the beneficiaries are taken to the area chief for verification. The chief then writes an introduction letter to a selected advocate.
- d. The advocate files for a Grant Letter of Administration. Interested parties will wait for three months for the process to be gazetted. The gazette notice is required when making an application for a hearing date for the letters of administration
- e. When the interested parties are issued with the letters of administration, they are given six months to agree on the distribution of the properties. Once agreed, they file an application for confirmation of grant.

- f. Certificate of Confirmation of grant is then issued by the court, with specifics on how the properties will be distributed. The certificate is submitted to the Land Registrar with an application for transmission of land which includes details such as: the parcel numbers of the land and how much is allocated to each beneficiary.

172. What steps to be considered in solving succession dispute?

Solving a succession dispute typically involves addressing disagreements over the inheritance of assets, titles, or leadership positions after someone passes away or steps down. Here are some general steps that might help in resolving such disputes:

- a. Determine the validity of the will or other succession documents.
- b. Encourage mediation or settlement discussions.
- c. Seek legal counsel if the dispute is complex or unclear.
- d. Follow relevant laws and cultural practices.
- e. Consider court action if other methods fail.

173. Who can be an administrator?

Any person of sound mind selected by the interested parties can serve as an administrator. While the interested parties have the powers to change the administrator in case of disagreements, it must be noted that this will prolong the succession process.

Islamic Land Succession

174. What is Islamic succession in land matters?

Islamic succession refers to the inheritance and distribution of land and property based on Shariah law, as prescribed in the Quran, Hadith, and Islamic jurisprudence (Fiqh).

175. What principles govern Islamic inheritance?

Islamic inheritance follows these key principles:

- a. Fixed shares: Certain relatives (e.g., spouse, children, and parents) receive specific portions of the estate.
- b. Male heirs receive twice the share of female heirs: This is based on Surah An-Nisa (4:11-12), reflecting financial responsibilities of men in Islam.
- c. Debts and funeral expenses must be settled before distribution.

176. Can a Muslim make a will (Wasiyyah) regarding land?

Yes, but only up to 1/3 of the estate can be allocated through a will, and it cannot override the rights of the fixed heirs.

177. What role does the Kadhi's Court play in Kenya?

The Kadhi's Court in Kenya has jurisdiction over matters of Islamic inheritance for Muslims, provided both parties are Muslim.

178. Can women own and inherit land under Islamic law?

Yes, women have full rights to inherit, own, and manage land as per Surah An-Nisa (4:7-11).

179. Who ensures the fair distribution of land in Islamic succession?

The Kadhi's Court in Kenya oversees Islamic inheritance matters and ensures that the estate is distributed according to Shariah law.

180. How does Islamic law handle disputes among heirs?

Disputes are settled through:

- a. Mediation within the family.
- b. The Kadhi's Court in Kenya, which rules based on Islamic law.
- c. Islamic scholars or religious leaders may also be consulted.



Frequently Asked Questions on Land Disputes & Conflicts Resolution

Land Conflict

181. What are the causes of land disputes in Kenya?

- a. Contested Ownership: Disagreements over rightful land ownership due to multiple claimants.
- b. Incomplete or missing documents leading to disputes.
- c. Boundary Disputes: Conflicts over land demarcation between individuals, communities, or counties.
- d. Illegal Land Transactions: Fraudulent land sales and illegal land allocation.
- e. Historical Land Injustices: Displacement and unfair land allocations from past regimes.
- f. Succession/Inheritance Conflicts: Disputes over land distribution among heirs.
- g. Encroachments and Illegal Structures: Unauthorized developments on public or private land.
- h. Zoning and Land Use Violations: Misuse of land contrary to planning regulations.
- i. Conflicts that came with business investments (Infrastructural development, Resources Extraction) and climate change
- j. Government land acquisitions

182. What are the main avenues of solving land disputes in Kenya?

Land disputes in Kenya can be resolved through two main approaches:

- a) Judicial;** Involve Litigation and Court Annexed Processes where disputes are handled within the judicial system e.g. Environmental and Land Court (ELC), Magistrates' courts, Court of Appeal
- b) Non-Judicial;** utilize alternative ways of resolving disputes outside of the formal court system e.g.
 - Alternative Dispute Resolution (ADR) includes mediation, negotiation and arbitration
 - Traditional Dispute Resolution (TDR) involves using Community and traditional National Land Commission; HLI determinations
 - Ministry of Lands
 - National Physical and Land Use Liaison Committees,
 - Local Administration Land Institutions
 - Justice Institutions i.e. KNCHR, Ombudsman,
 - Religious and civil society organizations
 - Professional institutions such as the Law Society of Kenya (LSK), the Institution of Surveyors of Kenya (ISK), the Kenya Property Developer Association (KPPDA)

183. What is the difference between Alternative Dispute Resolution ADR and Alternative Justice Systems (AJS)

- a. ADR refers to formal legal methods of resolving disputes outside court e.g. mediation, negotiation and arbitration
- b. AJS refers to customary, religious and community-based dispute resolution mechanisms e.g. using Njuri Ncheke, Council of Elders, Chiefs, Church leaders.

184. How Effective Are Alternative Justice Systems (AJS) in Resolving Land Disputes?

AJS methods are highly effective in managing land conflicts due to the following advantages:

- a. Cost-Effective: Resolving disputes through mediation or arbitration is significantly cheaper than litigation
- b. Timely Resolution: AJS methods take less time compared to formal court processes, reducing case backlogs.
- c. Amicable Settlements: They promote win-win outcomes, ensuring both parties reach a mutually agreeable solution.
- d. Less Confrontational: Encourages dialogue and compromise rather than adversarial legal battles.
- e. Promotes Social Cohesion: Helps maintain peace by fostering understanding between disputing parties.
- f. Reduces Court Burden: Diverts cases from the judicial system, allowing courts to focus on complex disputes.

AJS methods, are encouraged as practical, efficient, and community-driven solutions for land disputes

185. What is the process of AJS in resolving land disputes in Kenya?

- a. Starting the Process: Land disputes can be resolved through AJS by approaching community forums or traditional leaders, bypassing the formal court process.
- b. Mediation and Negotiation: Neutral mediators, often community leaders, help both parties discuss their issues and reach a fair agreement through open dialogue.
- c. Customary Law Application: Traditional land practices are used in AJS, as long as they align with the Constitution and legal standards, ensuring fairness.
- d. Documenting the Agreement: Once a resolution is reached, the terms are written down, outlining the rights and responsibilities of each party
- e. Enforcement: While AJS agreements are respected, they can be taken to formal courts, like the Environment and Land Court, if further enforcement is required.

186. What challenges are faced in resolving land disputes in Kenya?

- a. Complex Land Ownership System: The overlapping classifications of public, private and community land creates confusion over ownership often leading to disputes.
- b. Historical land Injustices: The legacy of historical land injustices, including illegal land allocation, displacement, and unequal land distribution, complicates dispute resolution, making it difficult to address claims for restitution or compensation.
- c. Weak enforcement of Land Laws: Despite the presence of comprehensive land laws, weak enforcement mechanisms, and lack of political will hinder the effective resolution of land disputes, allowing illegal land acquisition (grabbing) and occupation to persist.
- d. Corruption and Inefficiency: Corruption within land administration institutions, coupled with inefficient land registration and documentation processes, exacerbates disputes, as individuals may fraudulently acquire land or manipulate records.
- e. Limited Access to Justice: Many individuals, particularly in rural areas, face challenges in accessing formal judicial remedies due to high costs, lack of legal awareness, physical barriers, or ADR mechanisms that may not always guarantee fair outcomes.
- f. Conflicting policy position i.e.; riparian land standard and measurements (NEMA & Survey Act, PLUPA)

187. What forms of Land disputes can be resolved through AJS?

Alternative Justice Systems (AJS) are effective for resolving various non-complex land disputes, including:

- a. Boundary Disputes: Conflicts over land demarcation between individuals, families, or communities.
- b. Inheritance and Succession Conflicts: Disputes over land distribution among heirs.
- c. Customary and Communal Land Disputes: Conflicts involving indigenous or community-held land.
- d. Encroachments and Trespassing: Unauthorized occupation or use of private or communal land.
- e. Family Land Disputes: Conflicts over jointly owned land within families or extended relations.
- f. Tenancy and Leasehold Disputes: Disagreements between landlords and tenants regarding land use.
- g. Misuse of Land in Violation of Local Agreements: Land use disputes arising from breached informal agreements.
- h. Small-Scale Land Transactions: Disputes over minor land sales, leases, or undocumented transfers

Historical Land Injustices in Kenya

188. What is a Historical Land Injustice in Kenya?

A historical land injustice is a grievance that was occasioned by a violation of right in land on the basis of any law, policy, declaration, administrative practice, treaty or agreement which resulted in displacement of people from their habitual place of residence.

The grievance should have occurred between 15th June, 1895 when Kenya became a protectorate and has not been sufficiently resolved and subsists up to the period of August, 2010 when the Constitution of Kenya was promulgated.

189. What are the causes of Historical Land Injustices in Kenya?

Some of the causes of a Historical land injustice are grievances occasioned by among others:

- a. Colonial occupation
- b. Independence struggle
- c. Pre-independence treaty or agreement between a community and the government
- d. Development-induced displacement for which no adequate compensation or other form of remedy was provided, including conversion of non-public land to public land
- e. Corruption or other form of illegality
- f. Natural disaster
- g. Inequitable land adjudication process or resettlement scheme
- h. Politically motivated or conflict-based eviction
- i. Any other cause approved by the Commission

190. Who are the key actors in HLI and what are their roles in resolving HLI claims?

- a. The National Land Commission is the main actor. It receives, admits and investigates all historical land injustice complaints and recommends appropriate redress.
- b. The Claimant (s) initiate the process by filing of their claim(s), providing evidence, acting as witness or information source during investigations, participating in negotiations and receiving the decisions made. Other players such as Respondents or interested parties are also part of the process.
- c. The Judiciary (Environment and Land Court) hears and determines legal disputes related to HLI claims but courts mostly hear appeals from the decisions of NLC on HLI
- d. State organs and non-state actors including private persons or entities implement the NLC recommendations

191. What is the process of lodging HLI claims?

- a. The Commission may, on its own initiative, invite the public to submit claims related to historical land injustices. Such invitations shall be made through:
 - A notice in at least one daily newspaper with national circulation;
 - A notice on the Commission's official website; and
 - Announcements on local radio stations.
- b. The Commission may request any person, including government departments or state organs, to provide relevant particulars, documents, or information necessary for an investigation.
- c. A person may lodge a claim using Form NLC/HLI/01, as set out in the Schedule, or submit a claim through a letter, a memorandum, or an oral submission at a designated Commission office or any other venue identified by the Commission.

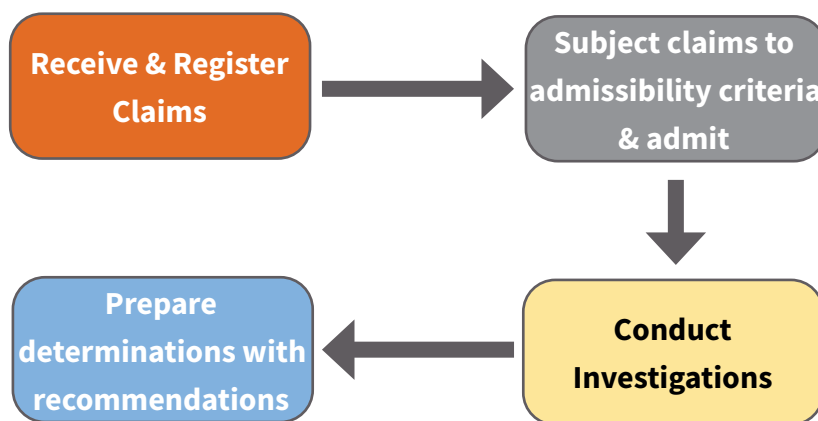
d. The claim shall include the following details:

- Name, address, and location of the claimant;
- Description of the property, including parcel number or an appropriate alternative description if a parcel number is unavailable;
- Date of the claim;
- Grounds for the claim and a description of the alleged injustice;
- The period when the injustice occurred;
- The resultant effect of the injustice;
- Particulars of the respondent, if any;
- Number and details of witnesses the claimant wishes to call;
- Any previous attempts made to resolve the injustice; and
- The suggested remedy.

e. The claim should be accompanied by any supporting documents necessary to substantiate the claim.

192. What are the steps of land dispute resolution through HLI?

- Receive & Register the claim
- Subject to Admissibility Criteria under the Law
- Investigate the claim
- Prepare a determination with recommendations



193. What is the criteria for admitting a historical claim?

A Historical Land Claim may only be accepted and processed by the commission if it meets the following:

- it is verifiable that the act complained of resulted in displacement of the claimant or other form of historical land injustice;
- the claim has not or is not capable of being addressed through the ordinary court system on the basis that:
 - The claim is debarred under section 7 of the Limitation of Actions Act, (Cap. 22) or any other Law;
 - The claim contradicts a law that was in force at the time when the injustice began;

- c. The claimant was either a proprietor or occupant of the land upon which the claim is based;
- d. No action or omission on the part of the claimant amounts to surrender or renunciation of the right to the land in question; and
- e. It is brought within five years from the date of commencement of the NLC Act. (As of September 2025, an amendment bill No 194, is awaiting presidential assent to extend the time for receiving and hearing HLI claims by five years)

194. What are the remedies for HLI?

After investigating any case of HLI referred to, shall recommend remedies among others—

- a. Restitution
- b. Compensation, if it is impossible to restore the land;
- c. Resettlement on an alternative land;
- d. Rehabilitation through provision of social infrastructure;
- e. Creation of wayleaves and easements;
- f. Communities;
- g. Affirmative action programmes for marginalized groups and
- h. Order for revocation and reallocation of the land;
- i. Order for revocation of an official declaration in respect of any public
- j. land and reallocation;
- k. sale and sharing of the proceeds;

195. What happens after HLI Claim determination?

Once the NLC determines an HLI claim, then follows communication to implementing bodies or persons to implement the recommendations.

196. Who is responsible for enforcing NLC HLI determinations?

The courts of law.

197. What is the recourse if one is not satisfied with an HLI determination?

If a party is dissatisfied with the NLC's determination on an HLI claim, they have the following options:

- a. Request for Review: The party may seek an internal review by the NLC before proceeding to court.
- b. Appeal to the Environment and Land Court (ELC): NLC decisions are subject to challenge by courts where parties are dissatisfied.



Frequently Asked Questions on Digital Land Systems

Ardhisasa

198. How does digitization help in land governance?

Digitization helps by making land records easily accessible, reducing the risk of fraud, and improving the ease of doing business. It also supports better planning and management of land resources, especially in the face of climate change challenges.

199. What is Ardhisasa?

Ardhisasa is a national land information management system developed by the Ministry of Lands and Physical Planning in consultation with the National Lands Commission, County Governments and other stakeholders. This platform enables the professionals and common mwananchi to access credible, reliable and efficient land and land-based services. For more information, visit <https://ardhisasa.lands.go.ke/home>

200. How do I get registered on Ardhisasa?

To access services on this platform, you have to go through a registration process. Click on the “Register” icon, where you will be required to register as an individual or a company. The requirements are as follows:

a. Individual registration

- Identification details (serial number of your current ID, ID number)
- Official mobile number (registered using your ID number)
- Personal e-mail address
- Set up a strong password

b. Company registration

- Company registration number
- Official company mobile number (registered using a director’s ID number)
- Company e-mail address
- Set up a strong password

201. How do I login and navigate through Ardhisasa after registration?

After successful registration, you will be redirected to a login page where you will be required to:

- a. Enter your ID number or Ardhisasa ID.
- b. Enter your password.
- c. Click ‘Continue’; a one-time password (OTP) will be sent to your official phone number and email.
- d. Enter the OTP to the field provided and click login.

202. How do I access a service that I need on Ardhisasa?

To access a service on this platform, the user is required to navigate to the service tab Under the options provided, the applicant can locate a service of interest e.g. search, transfer, charge, survey, valuation, land allocation among others. Each application contains additional FAQs for further guidance.

203. Where are payments made on Ardhisasa?

All land-related payments can be made through the Ardhisasa or Ardhipay platform. If an application is started on Ardhisasa, the system will auto generate the invoice otherwise, follow the steps below for payments through Ardhipay.

204. What payment methods are accepted by the system?

The system accepts a variety of payment methods, including:

- a. Mobile money
- b. Real Time Gross Settlement (RTGS)
- c. Banks

205. What is the role of an Advocate in the Registration process on Ardhisasa?

An Advocate on Ardhisasa acts as a witness on the documents of Registration in addition to initiating some of the various processes on the platform.

206. Are there any fees associated with using this payment system?

All payments are channelled through eCitizen, who normally charge a convenience fee depending on the transaction amount to a maximum of Ksh 50.

207. What should I do if my payment fails or is declined?

If the issue persists, reach out to the Ardhisasa customer care support team for further assistance.

208. How can I view my payment history and receipts?

Payment receipts and history can either be accessed through the Ardhisasa platform or Ardhipay platform, based on where the payments were channelled. If it is through Ardhisasa, they can be accessed through the specific department and transaction, where the paid and pending invoices will be shown. If it is through Ardhipay, you will find the tabs for 'Ardhipay services' or 'stamp duty' from which, when you choose either, the paid and pending invoices can be viewed.

209. Where else can I get information on land matters?

You can visit the County Government, Ministry of Lands or National Land Commission offices at your respective county. Additionally, you can engage professionals such as surveyors, physical planners, lawyers, valuers, architects, civil engineers, construction managers for specialized guidance.

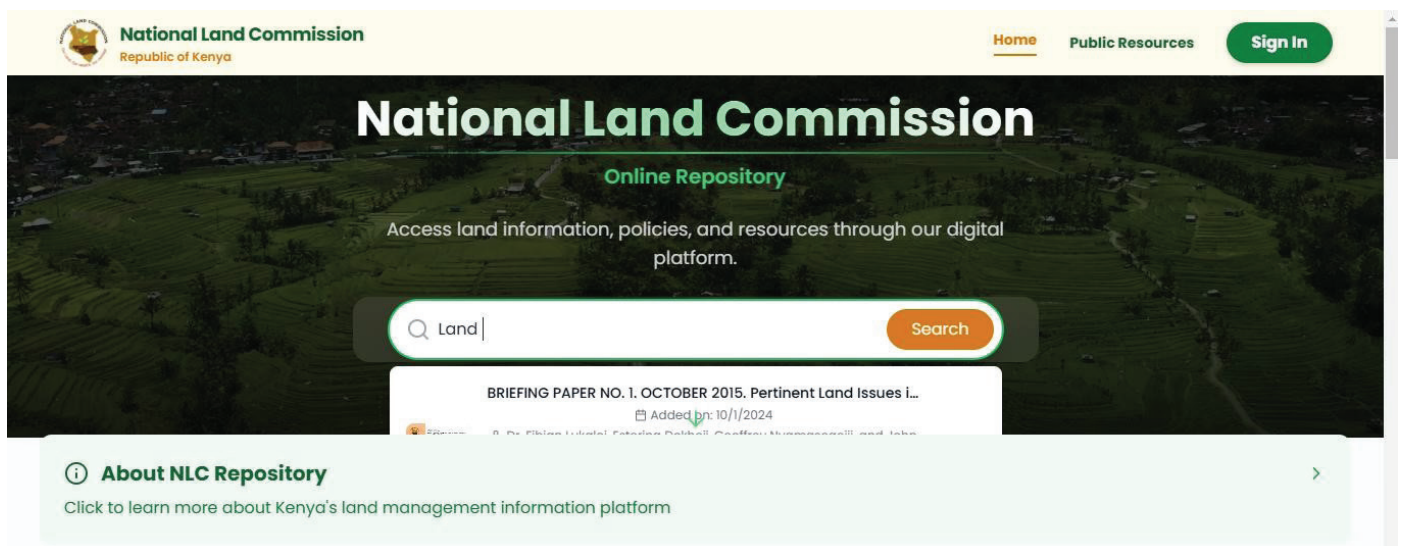
NLC Online Repository

The National Land Commission has also collated land information into an online repository. An online repository is a centralized digital storage for storage of digital objects; these range from digital archives, reports, manuscripts, anything that is in electronic format and needs a place to be stored either in the short or longer term. For more details visit <https://repository.landcommission.go.ke:4000>.

210. How do I access documents in online repository system?

Quick Search

- a. Type keywords in the main search bar
- b. As you type, you'll see:
 - 1) Suggested documents
 - 2) Matching categories
 - 3) Related authors
- c. Press Enter or click the search icon to see full results
- d. Results will show:
 - 1) Document thumbnails
 - 2) Titles and descriptions
 - 3) Authors and dates
 - 4) Download counts



211. Advanced Search

- a. Click “Advanced Search” below the search bar
- b. Filter by:
 - 1) Categories (select from dropdown)
 - 2) Date range (use calendar picker)

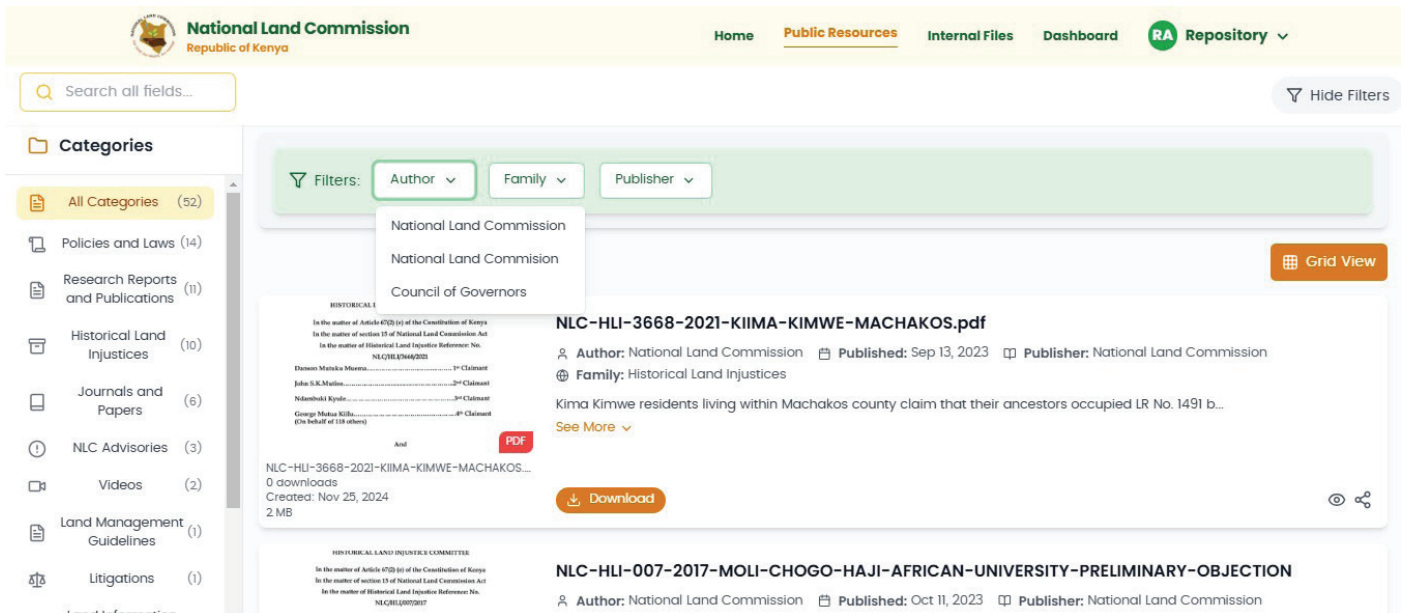
3) Author (type name)

4) Publisher

5) Document type

c. Results update automatically as you select filters

d. Clear filters using “Reset” button



212. Can I submit a document to the online repository?

Yes, you can submit a document on land matters such as an article, thesis, abstract etc

213. How do I submit documents in the online repository system?

a. In the landing page, click “Submit Document” button

b. Fill in required fields:

- Title (be specific and clear)
- Description (provide context)
- Author(s)
- Publication date
- Category (select most relevant)
- Tags (add relevant keywords)

c. Upload your file:

- Click “Choose File” or drag and drop
- Supported formats: PDF, DOCX, JPG, PNG
- Maximum file size: 10MB

d. Preview details and confirm

e. Click “Submit for Review”

214. How do I request for documents in the online repository system?

- Click “Request Document” button
- Complete the request form:
 - Document name/title
 - Reason for request
 - Urgency level
 - Your contact information
- Submit request
- You’ll receive email updates about your request

References

Land Policies, Laws, Regulations & Guidelines

CATEGORY	DETAILS
Relevant Policies	Constitution of Kenya
	National Land policy 2009
	Recommended national land policy, 2023
	Draft National Land Surveying and Mapping Policy
	Sessional Paper No. 3 on National land use policy, 2017
	National spatial plan
	National urban development policy
	Alternative Justice Systems Policy Framework, 2020
	National Land Commission Investigation and Inquiry Practitioners Guide, 2024
Laws	Land act, 2012
	Land Registration Act, 2012
	Community Land Act, 2016
	National Land Commission, 2012
	Land Adjudication Act, Cap 284
	Survey Act, Cap 299
	Physical and Land Use Planning Act, 2019
	Environment and Land Court Act, 2011
	County Government Act, 2012
	Law of Succession Act, Cap 160
	Environment Management and Coordination Act, Cap 387
	Judicature Act, Cap 8
	Judicature (Amendment) Act (No 10A of 2012)
	Land (Group Representatives) Act Cap 287 (repealed)
	Sectional Properties Act, 2020 Cap 286
	Access to Information Act 2016
Relevant Legislations	Legal Notice 279 of 2017- Community
	Legal Notice 250 of 2021 - The Physical and Land Use Planning (Liaison Committees) Regulations
	Legal Notice 278 of 2017 - The Land Registration (General) Regulations
	The National Environmental Tribunal Procedure Rules Cap. 387
	Legal Notice 258 of 2017 - The National Land Commission (Investigation of Historical Land Injustices) Regulations
County Based	The West Pokot Pokot County Climate Change Fund Act, 2021
	The West Pokot County Valuation And Rating Act, 2015 (No. 9 Of 2015)
	The West Pokot County Urban Planning Act, 2016

Key Physical and Land Use Planning forms

These forms are provided in the Physical and Land Use Planning (Development Permission and Control) (General) Regulations, 2021.

- 1) FORM PLUPA/DC/1A - Application for development permission (planning application) – Subdivision, Extension of Lease or Use or Change of user, Demolition, Densification, Easements and way leaves
- 2) FORM PLUPA/DC/1B - Application for development permission (building plan)
- 3) FORM PLUPA/DC/1C - Application for development permission (structural/civil engineering drawings)
- 4) FORM PLUPA/DC/1F - Application form for development permission of a strategic national project
- 5) FORM PLUPA/DC/1 - Authority to issue development permission and other Development control instruments
- 6) FORM PLUPA/DC/2 - Public notice - notification for proposed subdivision
- 7) FORM PLUPA/DC/3 - PUBLIC NOTICE - Notification for proposed change of user/extension of user/densification of use /extension of lease/renewal of lease
- 8) FORM PLUPA/DC/4 - Public notice - notification for proposed change of user/ extension of user/densification of use / extension of lease/ renewal of lease
- 9) FORM PLUPA/DC/5 - submission certificate
- 10) FORM PLUPA/DC/6A – Circulation sheet
- 11) FORM PLUPA/DC/6B - Circulation sheet (building plan)
- 12) FORM PLUPA/DC/7A – General circulation register
- 13) FORM PLUPA/DC/8 - Notification of approval/refusal/deferment of application
- 14) FORM PLUPA/DC/9 - Surrender of land for public purpose
- 15) FORM PLUPA/DC/10 - certificate of compliance
- 16) FORM PLUPA/DC/11 - notice for issuance of occupation certificate
- 17) FORM PLUPA/DC/12 - notification of revocation of development permission
- 18) FORM PLUPA/DC/14 - commencement notice for development
- 19) FORM PLUPA/DC/15 - notice of inspection

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